



# KOSDAQ Market Disclosure Regulation

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## **PART I. REPORTING, ETC. BY KOSDAQ-LISTED CORPORATIONS**

### **CHAPTER I. GENERAL PROVISIONS**

#### **§1. Purpose**

The purpose of this Part is to stipulate the matters necessary for reporting, disclosing and managing the corporate information, etc. of KOSDAQ-listed corporations in the KOSDAQ market established by the Korea Exchange (hereinafter referred to as “the Exchange”) pursuant to Article 391 of the Financial Investment Services and Capital Markets Act (hereinafter referred to as "the Act"). (Amended on January 28, 2009; July 22, 2015)

#### **§2. Definitions**

(1) [Deleted on July 22, 2015]

(2) The term “KOSDAQ-listed corporation” in this Part shall refer to the corporation prescribed in Article 9(15)3 of the Act, which is listed on the KOSDAQ Market. (Amended on January 28, 2009)

(3) The term "inquired disclosure" in this Part shall refer to reporting of corporate information to the Exchange by KOSDAQ-listed corporations in response to the request for disclosure of such information that was made by the Exchange to the concerned corporation pursuant to the provisions of Article 391(2)3 of the Act. (Amended on January 28, 2009)

(4) The term "disclosure officer" in this Part shall mean a person of a KOSDAQ-listed corporation who falls under any of the followings and is authorized to perform the reporting duties on behalf of the concerned KOSDAQ-listed corporation. Provided that, in the case of a corporation which has filed an application for commencement of rehabilitation procedures (including the simple rehabilitation procedures; same hereinafter) or has received the court ruling on the commencement of rehabilitation procedures provided for in the Debtor Rehabilitation and Bankruptcy Act, the custodian under Article 74 of the same Act or the protective custodian under Article 85 of the same Act shall be deemed to be the disclosure officer. (Amended on December 23, 2005; September 12, 2008; January 28, 2009; April 18, 2012; February 22, 2013)

1. A full-time director (including the executive officer of a corporation with executive officer system); and

2. From among the persons under Article 401-2(1)3 of the Commercial Act, the one who is in full-time service in the corporation concerned and participates in important decision-making meetings such as board meetings.

(5) The term "unfaithful disclosure" in this Part shall mean a case where a KOSDAQ-listed corporation falls under any of the cases of noncompliance with disclosure obligations, reversal or disclosure or change of disclosure, by failing to faithfully fulfill the reporting obligations under the provisions of this Part or reversing or changing the details of the matters already reported. (Amended on January 28, 2009)

(6) The term "equity capital" in this Part shall mean the amount that is calculated according to the following formula on the basis of the financial statement as at the end of the latest fiscal year (in cases where any of the actions under Articles 522, 527-2, 527-3 and 530-2 of the Commercial Act has taken place after the end of the latest fiscal year, it shall mean the effective date of the concerned action; the same hereinafter in this Paragraph): (Amended on January 28, 2009)

Equity Capital = Total assets – Total debts ± The amount of increase/decrease in capital stock and capital surplus during the period from the end of the latest fiscal year to the date when the cause for reporting or disclosure occurred

(7) The term "the largest shareholder" in this Part shall mean the largest shareholder provided for in Item (a) of Subparagraph 6 of Article 2 of the Act on Corporate Governance of Financial Companies. In such cases, "financial companies" shall be deemed as "corporations" and "outstanding voting shares (including equity shares; hereafter the same shall apply)" shall be construed as "outstanding shares". Provided that, if there are multiple persons who are the largest shareholders, the person who owns the largest number of shares shall be deemed as the largest shareholder, and, when a venture capital under [§2(1)14] of the KOSDAQ Market Listing Regulation is the largest shareholder, only when the person, who becomes the largest shareholder when the shares held by the concerned venture capital are excluded, participates in the management, such person shall be deemed to be the largest shareholder, and when calculating the number of shares in determining the largest shareholder, the number of shares owned by the persons specified in the Enforcement Rules of this Regulation (hereinafter referred to as "the Enforcement Rules") for the purpose of investment shall be excluded. (Amended on May 11, 2007; January 28, 2009; February 22, 2013; July 22, 2015; December 28, 2016; August 25, 2021)

(8) The term "related person" in this Part shall mean the person who falls under any of the subparagraphs of Article 3(1) of the Enforcement Decree of the Act on Corporate Governance of Financial Companies. (Amended on January 28, 2009; December 28, 2016)

(9) The term "major shareholder" in this Part shall mean the major shareholder provided for in Item (b) under Subparagraph 6 of Article 2 of the Act on Corporate Governance of Financial Companies. In such cases, "financial companies" shall be deemed as "corporations." Provided that the shareholder who does not exercise any influence on the management of the concerned corporation [referring to the shareholder whose stocks are excluded when calculating the number of shares of the largest shareholder pursuant to the paragraph (7)] shall be excluded. (Amended on January 28, 2009; July 22, 2015; December 28, 2016)

(10) The term "affiliated company" in this Part shall mean the affiliated company (including foreign corporations) provided for in Subparagraph 12 of Article 2 of the Monopoly Regulation

and Fair Trade Act. (Amended on November 24, 2021)

(11) The term “minority shareholder” in this Part shall mean a shareholder who owns less than 1% of total shares issued by the concerned corporation. Provided that the shareholder who falls under the largest shareholder, etc. (referring to the largest shareholder and its related persons; the same hereinafter) shall not be deemed as a minority shareholder. (Amended on January 28, 2009)

(12) The term “listed foreign corporation” in this Part shall mean the foreign corporation that falls under any of the following subparagraphs: (Amended on January 28, 2009)

1. A foreign corporation that has issued the stocks listed on the KOSDAQ Market: and
2. In cases where depositary receipts (hereinafter referred to as “DRs”) related to stocks are listed on the KOSDAQ Market, the foreign corporation that has issued the underlying stocks.

(13) The term “foreign stock certificates” in this Part shall mean the stocks that were issued by listed foreign corporations. (Amended on January 28, 2009)

(14) The term “DRs of foreign stocks” in this Part shall mean the DRs under Article 4(8) of the Act, which is based on the stocks issued by a foreign corporation. (Amended on January 28, 2009)

(15) The term “home country” in this Part shall mean the country where the law that has provided the legal basis for the incorporation of a listed foreign corporation was enacted. Provided that, when it is deemed inappropriate to make the concerned country the home country, the Exchange may set forth differently, while taking into consideration the actual location of the corporation. (Amended on January 28, 2009)

(16) The term "derivatives" in this Part shall mean the derivatives provided for in Article 5 of the Act. (Amended on January 28, 2009)

(17) The term “large corporations” in this Part shall refer to the KOSDAQ-listed corporations of which total asset is KRW 200 billion or more as at the end of the latest fiscal year. (Amended on January 28, 2009; July 22, 2015)

(18) The term “financial creditor” in this Part shall mean the financial creditor provided for in Subparagraph 2 under Article 2 of the Corporate Restructuring Promotion Act. (Amended on December 23, 2005; December 28, 2016)

(19) The term “principal creditor bank” in this Part shall mean the principal creditor bank provided for in Subparagraph 5 of Article 2 of the Corporate Restructuring Promotion Act. (Amended on December 28, 2016)

(20) The term “council of financial creditors” in this Part shall mean the council of financial creditors provided for in Article 22 of the Corporate Restructuring Promotion Act. (Amended on January 28, 2009; April 18, 2012; December 28, 2016)

(21) [Deleted on February 22, 2013]

(22) The term “holding company” in this Part shall refer to the company coming under any of the following subparagraphs: (Amended on November 24, 2021)

1. A holding company noted in Subparagraph 7 of Article 2 of the Monopoly Regulation and Fair Trade Act;
2. A financial holding company pursuant to Subparagraph 1 of Article 2(1) of the Financial Holding Companies Act; and
3. A Korean company whose sole business objective is to control the business activities of a subsidiary established pursuant to statutes of a foreign country by holding the stocks issued by that subsidiary (hereinafter referred to as the “foreign subsidiary”) and the sum of value of stocks of foreign subsidiary held by the concerned company is 50/100 or more of total asset (hereinafter referred to as the “foreign holding company located in Korea”).

(23) The term “foreign holding company” in this Part shall mean the listed foreign corporation whose core business objective is to control business activities of another corporation by holding the stocks issued by the corporation (only the case where the sum of the value of stocks of subsidiaries held is 50% or higher of the total assets) (hereinafter referred to as the “foreign holding company”). (Amended on December 23, 2005; January 28, 2009; November 4, 2011)

(24) The term “subsidiary” in this Part shall mean the subsidiary noted in Subparagraph 8 of Article 2 of the Monopoly Regulation and Fair Trade Act and the subsidiary provided for in Subparagraph 2 of Article 2(1) of the Financial Holding Companies Act. Provided that the subsidiary of a foreign holding company or a foreign holding company located in Korea shall mean the consolidated subsidiary that is subject to the consolidation of financial statements according to the accounting standards that the relevant company has adopted. (Amended on December 23, 2005; May 11, 2007; January 28, 2009; November 4, 2011; November 24, 2021)

(25) The term “special purpose acquisition company” in this Part shall refer to the special purpose acquisition company pursuant to Subparagraph 14 of Article 6(4) of the Enforcement Decree of the Act. [December 18, 2009]

(26) The term “technology growth company” in this Part shall refer to the company under [§2(1)39] of the KOSDAQ Market Listing Regulation. [March 2, 2011] (Amended on February 22, 2013; August 25, 2021)

(27) The term “large-sized corporation” in this Part shall refer to a KOSDAQ-listed corporation with total asset over KRW 2 trillion at the end of the latest fiscal year. [February 22, 2013]

(28) The term “parent company”, “consolidated subsidiary” and “principal consolidated subsidiary” in this Part shall refer to the companies noted in each of the following subparagraphs: [February 22, 2013] (Amended on July 22, 2015; May 2, 2019)

1. Parent company: A parent company provided for in Subparagraph 3 of Article 2 of the Act on External Audit of Stock Companies, Etc. (hereinafter referred to as “the Act on External Audit”). Provided that, in cases where a listed foreign corporation prepares the consolidated financial statement in accordance with the accounting standards adopted it, including the international accounting standards, it shall be the parent company according to the standards.

2. Consolidated subsidiary: A consolidated subsidiary provided for in Article 7(1) of the Act on External Audit. Provided that, in cases where a listed foreign corporation prepares the consolidated financial statement in accordance with the accounting standards adopted by it, including the international accounting standards, it shall be the consolidated subsidiary according to the standards.

3. Principal consolidated subsidiary: From among the consolidated subsidiaries noted in subparagraph 2, the one whose total assets at the end of latest fiscal year is at least 10% of the total assets of the parent company.

(29) [Deleted on September 11, 2013]

(30) [Deleted on September 11, 2013]

(31) In addition to paragraphs (1) through (30), the terms used in this Part shall have the same meaning as those given in the Act, the Enforcement Decree of the Act, the Enforcement Rule of the Act and other relevant statutes, and the rules and regulations established by the Exchange. (Amended on December 18, 2009; March 2, 2011; February 22, 2013)

### **§3. Applicable Standards**

(1) The financial matters applied in this Part shall be based on the financial statements (referring to the consolidated financial statements, in the case of a KOSDAQ-listed corporation that is a holding company or a parent company; the same hereinafter) revised according to the result of the audit by an auditor prescribed in Subparagraph 7 of Article 2 of the Act on External Audit (hereinafter referred to as "CPA auditor"). Provided that, in cases where a listed foreign corporation prepared its financial statements in accordance with the international accounting standards established by the International Accounting Standards Board or the generally accepted accounting principles in the United States of America (“US GAAP”) and had it audited according to the laws of the home country or the country where the company’s stocks are listed, it may be based on the concerned financial statements and the accounting standards/principles adapted for the preparation of the concerned financial statements. (Amended on January 28, 2009; February 22, 2013; May 2, 2019)

(2) Notwithstanding paragraph (1), the financial details applied in the provisions of item (e)(iii) under [§6(1)2] shall be based on the financial statements approved by the board of directors or other resolutions, and in cases where the annual report for the latest fiscal year has not been submitted or the opinion of CPA auditor on the latest annual report is adverse opinion, disclaimer of opinion or qualified opinion due to the limit placed on the scope of audit, the financial statements at the end of the year immediately preceding the latest year shall be

deemed as the financial statements at the end of the latest fiscal year. (Amended on January 28, 2009)

(3) [Deleted on January 28, 2009]

(4) In applying the provisions of this Part, the equity capital calculated in accordance with [§2(6)], the sales amount of the latest fiscal year (excluding the sales amount of the latest fiscal year under [§6(1)2e(iii)]), and the total assets at the end of the latest fiscal year shall apply for the period from the day when three (3) months have passed since the end of the latest fiscal year to the end of three (3) months after the end of the current fiscal year. Provided that, in the case of a listed foreign corporation that is applied with the provisions of Article 176(2) of the Enforcement Decree of the Act, it shall be the period from the day when four (4) months have passed since the end of the latest fiscal year to the end of four (4) months after the end of the current fiscal year. (Amended on December 23, 2005; January 28, 2009; April 18, 2012; February 22, 2013)

(5) In applying provisions of this Part, in cases where the equity capital calculated in accordance with [§2(6)] is less than the capital stock, the most recent capital stock shall be deemed as the equity capital. [Amended on December 23, 2005]

(6) Notwithstanding paragraph (1), in the case of a KOSDAQ-listed holding or parent company, each of the following subparagraphs shall apply: [April 21, 2010] (Amended on February 22, 2013; April 29, 2015; November 24, 2021, December 7, 2022)

1. The sales amount noted in [§6(1)2(e)(i)c)], [§6(1)2(e)(ii)c)], and [§37(2)4(c)] shall be based on the separate financial statements under the K-IFRS (Korea-International Financial Reporting Standards) No. 1027 established by the Korea Accounting Institute (hereinafter referred to as the “separate financial statement”). Provided that, for a holding company, it shall be based on the consolidated financial statements.

2. The matters in [§6(1)2(e)(i)b)], [§6(1)2(e)(ii)b)], and [§37(2)4(b)] shall be based on the consolidated financial statements while excluding the non-controlling interests from the equity capital.

3. The matters noted in [§6(1)2(d)(vi)], [§6(1)2(d)(viii)], [§7] and [§13] shall be based on the separate financial statements.

#### **§4. Faithful Fulfillment of Disclosure Obligations and Responsibility Thereof**

(1) Each KOSDAQ-listed corporation shall disclose all the matters to be disclosed pursuant to the provisions of this Part and other corporate matters that may have influence on its stock price, in a voluntary, faithful and timely manner. (Amended on January 28, 2009; December 28, 2016)

(2) Each KOSDAQ-listed corporation shall ensure that the details of corporate information are not leaked or disseminated in the KOSDAQ Market in the form of rumors or news, etc. before

such information is publicly disclosed pursuant to the provisions of paragraph (1). (Amended on January 28, 2009)

(3) For the matters arising from the breach of the provisions of paragraphs (1) and (2) by a KOSDAQ-listed corporation, the concerned corporation shall bear the responsibility. (Amended on January 28, 2009)

## **§5. Methods for Reporting and Document Submission**

(1) The matters to be disclosed and reported to the Exchange by KOSDAQ-listed corporation pursuant to the provisions of this Part KOSDAQ-listed corporations shall be prepared and submitted electronically as provided in Article 436 of the Act, and in the case of electronic submission, the submission in writing (including submission via facsimile) may be waived. (Amended on January 28, 2009)

(2) Notwithstanding the provisions of paragraph (1), when the Exchange deems it inevitable, a KOSDAQ-listed corporation may report by filing of written submission (including submission via facsimile) in addition to the method of electronic submission. (Amended on January 28, 2009)

(3) [Deleted on January 28, 2009]

(4) Upon receiving a report from a KOSDAQ-listed corporation pursuant to the provisions of paragraphs (1) and (2), the Exchange shall disclose the main contents of the report without delay after verifying whether or not the details reported would cause confusion in investment decisions and whether or not the supporting documents are attached, through the disclosure media specified in the Enforcement Rules (hereinafter referred to as the “disclosure media”). Provided that the verification procedure may be omitted in cases where a KOSDAQ-listed corporation that meets the requirements specified in the Enforcement Rules (hereinafter referred to as the “corporation exempted from the verification procedure”) makes a report on the matters to be disclosed specified in the Enforcement Rules. [January 28, 2009] (Amended on February 22, 2013)

## **CHAPTER II. DISCLOSURE OBLIGATIONS**

### **Section 1. Reporting and Disclosure of Material Business Matters**

## **§6. Matters to Be Disclosed**

(1) When falling under any of the followings, each KOSDAQ-listed corporation shall report the details of the facts or decisions [referring to the resolutions of the board of directors or the decisions made by the representative director (chief executive officer in the case of a

corporation with an executive officer system; the same hereinafter) or other officers, major shareholders, etc. who have de facto decision-making authority and the resolutions of the board of directors shall include the decisions made by the committees within the board of directors stipulated in Article 393-2 of the Commercial Act; the same hereinafter] to the Exchange on the day (in the case where the report is made according to the manner stipulated in the Enforcement Rules due to an unavoidable reason, it shall be deemed that the report has been made on the day on which the cause for reporting occurred; the same hereinafter in the proviso to [§6-2(1)], the proviso to [§7(1)] and [§7(2)] (limited to cases where reporting is required on the day on which the cause for reporting arises), [§12(4)] and [§30]) on which the cause for reporting has occurred. Provided that, in cases where, among subparagraphs 1(c), 2(a)(ix), 2(b)(vii) and 2(c)(iv), the debtor falls under any of subparagraphs 3(b)(i) through (iii) and in the case of falling under subparagraphs 2(d)(vii) and 3(b)(v), the report shall be made by the day following the date on which the cause for reporting occurred. (Amended on December 23, 2005; September 8, 2006; September 29, 2006; May 11, 2007; September 12, 2008; January 28, 2009; April 15, 2009; July 1, 2009; December 18, 2009; April 21, 2010; December 1, 2010; December 1, 2010; March 2, 2011; November 4, 2011; April 18, 2012; February 22, 2013; September 11, 2013; April 29, 2015; July 22, 2015; December 28, 2016; May 2, 2018; May 2, 2019; August 25, 2021; November 24, 2021, December 7, 2022; November 13, 2024; October 1, 2025)

1. Cases where any of the following events or decisions relating to the businesses or production activities of the concerned KOSDAQ-listed corporation has taken place:

(a) Suspension of business equivalent to 10% or more of the sales amount of the latest fiscal year, or the complete or partial suspension of the main business, or imposition of an administrative disposition concerning such suspension (including revocation or return of the business authorization, permission or license, and suspension of sales operation for the products corresponding thereto);

(b) Suspension of transaction with a customer who accounts for 10% or more of the sales amount of the latest fiscal year;

(c) Conclusion of a single sales contract or supply contract equivalent to 10% or more (limited to the cases where the contract amount is greater than or equal to the amount specified in the Enforcement Rules) of the sales amount of the latest fiscal year or termination of such contract;

(d) Case where a decision to recall, remove or etc. its products in an amount equivalent to 10% (5% for a large-sized corporation) or more of the sales amount of the latest fiscal year has been made; and

(e) Case where a factory producing 10% or more of the sales amount of the latest fiscal year has suspended its production or has been shut down.

(f) When any of the following facts apply in relation to a serious accident occurring at a KOSDAQ-listed corporation: [October 1, 2025]

(i) When the occurrence of a serious accident is reported to the Minister of Employment and Labor pursuant to Article 54, Paragraph 2 of the Occupational Safety and Health Act; [October 1, 2025]

(ii) When it is confirmed that criminal punishment has been imposed on the relevant corporation or its executives (including retired persons) for the occurrence of a serious industrial accident pursuant to Article 6 or 7 of the Act on the Punishment, etc. of Serious Accidents; or [October 1, 2025]

(iii) When it is confirmed that criminal punishment has been imposed on the relevant corporation or its executives (including retired persons) for the occurrence of a serious civic accident pursuant to Article 10 or 11 of the Act on the Punishment, etc. of Serious Accidents. [October 1, 2025]

(g) When a technology growth company that has not been listed for five (5) years resolves to add or change business objectives through an amendment to the articles of incorporation at a general meeting of stockholders. In this case, the results of the general meeting of stockholders in which the relevant content is included as an agenda item shall be reported on the same day as the report filed pursuant to paragraph (1)3(d). [July 1, 2026]

2. Cases where any of the following events or decisions that bring about substantial changes in the financial structure of the concerned KOSDAQ-listed corporation has taken place:

(a) Case where there has been any of the following events or decisions about the securities issued by the concerned KOSDAQ-listed corporation:

(i) When a decision on capital increase or reduction has been made;

(ii) When a decision relating to retirement of stocks has been made. In such cases, the matters on the stock retirement conducted for the capital reduction noted in (i) shall be reported pursuant to (i);

(iii) When a decision on acquisition or disposal (including conclusion, termination or extension of a trust contract, etc.) of treasury stocks has been made; (Amended on July 1, 2026)

(iv) When a decision on a split or a reverse-split of stocks or DRs (hereinafter referred to as the "stocks, etc.") has been made (excluding the reverse stock splits for capital reduction);

(v) When a decision to convert par-value stocks into non-par value stocks or vice versa pursuant to Article 329 of the Commercial Act has been made;

(vi) When it falls under any of the following, with regard to equity-related bonds, etc. (referring to the stocky-related corporate bonds prescribed in Article 165-10(1) of the Act and the contingent bonds convertible into stocks of a bank provided for in Article 33(1)3 of the Banking Act; the same hereinafter):

a) When a decision on the issuance of convertible bonds, bonds with warrants, exchangeable bonds, or DRs (including issuance of securities or certificates similar thereto in a foreign country) has been made;

b) When a decision on the issuance of contingent capital securities (referring to the contingent capital securities prescribed in Article 165-11 of the Act and the contingent bonds provided for in Subparagraphs 2 through 4 of Article 33(1) of the Banking Act; the same hereinafter) has been made;

c) When the causes for conversion of contingent capital securities into stocks have occurred or the causes for exemption of obligation for redemption and interest payment of the contingent capital securities have occurred: or

d) When a decision on the acquisition of convertible bonds, bonds with warrants or exchangeable bonds before maturity or a decision on the sale of the relevant bonds acquired before maturity has been made.

(vii) [Deleted on December 23, 2005]

(viii) [Deleted on December 23, 2005]

(ix) When a KOSDAQ-listed corporation, which plans to list or has already listed its stocks, etc. on an overseas exchange, falls under the followings:

a) When a decision to list the stocks, etc. on an overseas exchange has been made; and the concerned stocks, etc. have been listed thereon;

b) When the corporation, after having listed its stocks, etc. on an overseas exchange, has filed a periodic or timely reporting or disclosure of corporate information or has submitted a report and other related documents to the supervisory authority or the stock exchange, etc. of the concerned country. Provided that this provision shall not apply to a case where the reporting or disclosure duplicate the matters that are disclosed, reported or submitted pursuant to this Part and the securities related laws and regulations of Korea;

c) When the corporation has made a decision to delist the stocks, etc. listed on an overseas exchange, or the securities supervisory authority or the stock exchange of the concerned country has taken such measures as trade suspension, delisting, etc. against the stocks, etc. (including the case where such measures were request by the request of the concerned corporation); and the stocks, etc. have been delisted; and

d) When the corporation has been requested by the stock exchange of the concerned country to make an inquired disclosure.

(x) When the concerned corporation has made a decision to delist its stocks; and

(xi) When it is confirmed that the bills issued have been forged or altered.

(b) Case where there has been any of the following events or decisions concerning the investment activities of the concerned KOSDAQ-listed corporation:

(i) [Deleted on January 28, 2009]

(ii) [Deleted on December 23, 2005]

(iii) [Deleted on December 23, 2005]

(iv) When a decision on a new facility investment, non-facility investment specified in the Enforcement Rules, expansion of facilities or establishment of a separate factory, each of which is equivalent to 10% (5% for large-sized corporations) or more of the equity capital has been made;

(v) When a decision to acquire or dispose tangible assets (including real estate for leasing; the same hereinafter) worth 10% or more of the total assets of the latest fiscal year [including the acquisition or disposal through specified money trusts under or privately placed funds under the Act (limited to the case where the concerned corporation exercises de facto influence over the management of assets); the same hereinafter for the acquisitions or disposals in (vi) of this Item] has been made;

(vi) When a decision to make an investment (referring to acquisition of stocks or investment securities issued by other corporations; the same hereinafter) in or an acquisition of equity-related bonds of a person who has acquired newly-issued stocks of the concerned KOSDAQ-listed corporation by way of the third party allotment in the recent six (6) months has been made; or when a decision to make an equity investment, to dispose equity shares or to acquire or dispose equity-related bonds, in an amount of 10% (5% for large-sized corporations) or more of its equity capital has been made. Provided that this provision shall not apply to any of the following cases and in the case of making an investment or acquisition of equity-related bonds worth of 10% (5% for large-sized corporations) or more of the equity capital, the report shall include the matters specified in the Enforcement Rules about the counterparty of the investment:

a) Case of investment by tender offers. Provided that, in the case of a tender offer for the stocks issued by a foreign corporation pursuant to foreign laws, it shall be reported at the time when the registration statements of tender offer or other documents equivalent thereto are submitted in the concerned country.

b) Case of acquisition or disposal of trading securities (including disposal of equity shares and the equity investment through exercise of the rights on collateral, etc.) by financial institutions (referring the institutions falling under any of the subparagraphs of Article 38 of the Act on the Establishment, etc. of Financial Services Commission; the same hereinafter).

(vii) When a corporation not listed on either the KOSPI Market or the KOSDAQ Market, in which the concerned KOSDAQ-listed corporation has made an investment in an

amount equivalent to 10% (5% for large-sized corporations) or more of its equity capital (based on the value stated on the balance sheet as at the end of the latest fiscal year) falls under any of items (b)(i) through (b)(iii) of subparagraph 3;

(viii) [Deleted on July 22, 2105]

(c) Case where there has been any of the following events or decisions with respect to the claims or liabilities of the concerned KOSDAQ-listed corporation:

(i) When there has been a decision on increasing the short-term borrowings by an amount equivalent to 10% or more of the equity capital. In such cases, the short-term borrowings shall include the corporate bonds with maturities less than one (1) year, which are issued by means other than a public offering and exclude the amount borrowed to repay the existing short-term borrowings;

(ii) [Deleted on December 23, 2005]

(iii) When a decision has been made to take over or forgive a debt equivalent to 10% (5% for a large-sized corporation) or more of the equity capital;

(iv) When a decision has been made to provide a collateral (only in the case of providing a collateral for others) or debt guarantee (excluding the debt guarantees for tax payment guarantees and performance guarantees such as bid bonds, contract bonds, performance bonds, maintenance bonds) equivalent to 10% (5% for large-sized corporations) or more of its equity capital, and when the debtor falls under any of subparagraphs 3(b)(i) through 3(b)(iii). In such cases, the balance of debt guarantee, or collateral provided per debtor as of the day when the concerned decision was made or the cause of disclosure occurred, as well as the matters specified in the Enforcement Rules about the debtor shall also be included in the report;

(v) When a decision to make an advance payment, suspense payment, cash loan or securities (referring to the securities in each of subparagraphs of Article 4(2) of the Act, bills or negotiable certificates of deposit; the same in this Item) lending to a person who has acquired new stocks of the concerned KOSDAQ-listed corporation by third party allotment in the recent six (6) months has been made, or a decision to make an advance payment, cash provisional payment or cash loan or securities lending worth 10% (5% for a large-sized corporation) or more of the equity capital. Provided that this provision shall not apply to the loans to the company employees or to the employee stock ownership association and in case of an advance payment, cash provisional payment, cash loan or securities lending in an amount of 10% (5% for a large-sized corporation) or more of the equity capital, the report shall include the matters specified in the Enforcement Rules about the counterparty of the payment or loan;

(vi) When it has failed to pay the principal and interest equivalent to 10% (5% for large-sized corporations) or more of equity capital in relation to the corporate bonds issued. In such cases, the amount to be reported shall be determined based on the cumulative amount, excluding the amount already reported, of the unpaid amount incurred in the

concerned fiscal year; and

(vii) When, in relation to the loans obtained from the financial institutions under Article 21(2) of the Enforcement Decree of the Credit Information Use and Protection Act, it has failed to pay the principal and interest equivalent to 10% (5% for large-sized corporations) or more of equity capital. In such cases, the amount to be reported shall be determined based on the cumulative amount, excluding the amount already reported, of the unpaid amount incurred accrued in the concerned fiscal year.

(d) Case where there have been events or decisions falling under the followings with respect to the profit or loss of the concerned KOSDAQ-listed corporation:

(i) When any calamity occurred due to a natural disaster, war, upheaval or fire, etc. reaches or exceeds 10% (5% for large-sized corporations) or more of total assets at the end of the latest fiscal year (based on the amount stated on the balance sheet as at the end of the latest fiscal year);

(ii) [Deleted on December 23, 2005]

(iii) [Deleted on May 11, 2007]

(iv) When it is confirmed that a fine, penalty or surcharge exceeding 5% (3% for large-sized corporations) of its equity capital has been imposed;

(v) [Deleted on December 23, 2005]

(vi) When it is confirmed that an officer or employee (including those who retired) are suspected of embezzlement or misappropriation and when the matters on the progress of repayment of the embezzled amount (including withdrawal of lawsuit) have been confirmed or the suspicion of embezzlement or misappropriation has been found to be true. In such cases, for the employees, it shall be limited to the amount not less than 5% (3% for large-sized corporations) of the equity capital;

(vii) When a loss (including the unrealized amount) of more than 10/100 (5/100 for large-sized corporations) of the equity capital has occurred from the trading of derivative products [excluding the hedging trades for which high level of risk hedging effect is expected according to the accounting standards under Article 5(1)1 of the Act on External Audit]. In such cases, the amount to be reported shall be calculated based on accumulated losses, excluding the amount already reported, of the losses incurred in the concerned fiscal year and in cases where there are multiple derivatives trades, the gains and losses shall be offset;

(viii) When it is confirmed that the impairment loss (to be determined by aggregating the impairment losses per receivable, based on the accumulated amount for the concerned fiscal year) incurred from the receivables other than accounts receivables is 50% or more of equity capital. In such cases, the report shall include the matters specified in the Enforcement Rules about the debtors of the receivables to be impaired;

and

(ix) When it is confirmed that the officers, etc. (including the retired officers) are suspected of a disguised payment and when the matters on the progress of reimbursement of the disguised payment have been confirmed or the suspicion of disguised payment has been found to be true.

(e) Case where there have been events or decisions falling under the followings with respect to the settlement of accounts of the concerned KOSDAQ-listed corporation:

(i) When an audit report has been received from an auditor pursuant to the Article 23(1) of the Act on External Audit. Provided that, in the event that, according to the audit report concerned, any of the following facts or cases has been confirmed, such fact shall be reported as well:

a) The fact that the CPA auditor's opinion (in the case of a KOSDAQ-listed holding company or parent company, it refers to the auditor's opinion on the consolidated financial statements and separate financial statements; the same hereinafter) is adverse, disclaimer of opinion or qualified opinion due to the limit placed on the scope of audit;

b) The fact that 50% or more of capital at the end of latest fiscal year (including the case of entire capital impairment) has been impaired or the equity capital has fallen below KRW 1 billion;

c) Case where sales amount of the latest fiscal year was less than KRW 10 billion or a loss before tax from continuing business has been confirmed; and (Amended on July 9, 2025)

d) Case where the auditor reviews the status of operation of the internal accounting management system under Article 8 of the Act on External Audit, or, as a result of the audit, there exist a material weakness, or a significant limit is placed on the audit scope, or the review/audit opinion is not expressed.

(ii) When, according to the semi-annual review (audit) report or the quarterly report, the fact of coming under any of the followings has been confirmed:

a) Case where CPA auditor's semi-annual review opinion and audit opinion (in the case of a KOSDAQ-listed holding company or parent company, it refers to the auditor's opinion and review opinion on the consolidated financial statements and the separate financial statements; the same hereinafter) is adverse, disclaimer of opinion or qualified opinion due to the limit placed on the scope of audit;

b) Case where 50% or more of the capital at the end of the latest semiannual period (including the case of entire capital impairment) has been impaired or the equity capital has fallen below KRW 1 billion; and

c) Case where the sales amount is less than KRW 700 million for the latest semiannual period or less than KRW 300 million for the latest quarter. Provided that, the cases falling under the provision of [§61(1)4(d)] of the Enforcement Rules of the KOSDAQ Market Listing Regulation shall be excluded.

(iii) When there was a fact or decision that falls under any of the followings as a result of settlement of accounts for the latest fiscal year. In such cases, the report shall be made prior to making the announcement or notification of the call of the general shareholders' meeting for adoption of settled accounts, and the sales, operating income/loss, net income/loss and the status of total assets, liabilities and capital shall be reported as well.

a) The fact that the sales, operating income/loss or net income/loss for the latest fiscal year has increased or decreased by 30% (15% for large-sized corporations) compared to the immediately preceding fiscal year;

b) Case of falling under any of subparagraphs 1 through 4 of [§53(1)] of the KOSDAQ Market Listing Regulation; and

c) Case of falling under any of [§54(1)6] and subparagraphs 15 through 18 of [§56(1)] of the KOSDAQ Market Listing Regulation. (Amended on July 9, 2025)

(iv) When a decision on stock dividends has been made. In such cases, the planned details shall be reported by ten (10) days before the record date.

(v) When a resolution on cash dividends or dividends-in-kind (including quarterly and interim dividends) has been made, and the closing period of the register of shareholders or the record date for the dividends (excluding the cases where a specific date has been set as the record date for dividends in the articles of incorporation) has been determined. In such cases, the report on the concerned dividends shall be made based on the market price-dividends ratio specified in the Enforcement Rules and the par value-dividends ratio shall not be indicated.

(vi) When falling under any of the followings with respect to the violations of the provisions of Article 5(3) of the Act on External Audit (hereinafter referred to as the "violation of the accounting standards"):

a) When it is confirmed that, pursuant to the Regulation on External Audit and Accounting, etc., the Securities and Futures Commission has made a resolution to inform or refer to prosecutors' office the concerned KOSDAQ-listed corporation or its officers or employees (including those who retired);

b) When it is confirmed that the concerned KOSDAQ-listed corporation or its officers or employees (including those who retired) has been indicted by the prosecutors' office for violation of the accounting standards; or

c) When it is confirmed that the Securities and Futures Commission has made a

resolution to recommend the concerned KOSDAQ-listed corporation to dismiss its officers pursuant to the Regulation on External Audit and Accounting, etc.

(vii) [Deleted on February 22, 2013]

3. Cases where there have been events or decisions falling under any of followings with respect to the management activities of the concerned KOSDAQ-listed corporation:

(a) Case where there have been events or decisions falling under any of the followings with respect to the corporate governance or organizational restructuring of the concerned KOSDAQ-listed corporation:

(i) When the largest shareholder or the representative director has been changed. In such cases, the matters specified in the Enforcement Rules about the largest shareholder or representative director shall be included in the report;

(ii) [Deleted on December 23, 2005]

(iii) [Deleted on July 22, 2015]

(iv) [Deleted on December 23, 2005]

(v) [Deleted on December 23, 2005]

(vi) Case where a subsidiary of a KOSDAQ-listed holding company has newly been included or excluded;

(vii) Case where there has been a decision on swap or transfer of stocks under the provisions of Sub-section 2 and Sub-section 3 of Section 2 under Chapter IV of Part III of the Commercial Act;

(viii) Case where there has been a decision or a board of directors' resolution on the matters prescribed in Articles 374, 522, 527-2, 527-3, 530-2 and 530-12 of the Commercial Act and Subparagraphs 1 through 3 of Article 171(2) of the Enforcement Decree of the Act;

(ix) Case where, with regard to the change of the largest shareholder or the management, the agreement, etc. that fall under any of the followings have been entered into or the agreement, etc. have been terminated or cancelled:

a) An agreement on stock acquisition/transfer (including such arrangements as a pre-agreement to trade stocks, etc.) accompanying the change of the largest shareholder or an agreement aiming at the change of management control such as the dismissal/appointment of executive officers, amendment of articles of incorporation, etc. or other agreements equivalent thereto. In such cases, the matters about the transferee of stocks or management rights specified in the Enforcement Rules shall be included in the report; and

b) Agreement, etc. to offer all or part of the stocks held by the largest shareholder as collateral (limited to the case where the largest shareholder can be changed if the security right is exercised).

(x) Case where a cause for conversion of stocks with multiple voting rights issued pursuant to Article 16-11, Paragraph 1 of the Special Act on the Promotion of Venture Businesses into common stocks. [July 1, 2026]

(xi) When a resolution falling under any of the following has been made regarding the listing of a subsidiary, etc. under [§19-2] of the KOSDAQ Market Listing Regulations:

① When a resolution has been made regarding the assessment of the impact of the listing of a subsidiary, etc. on stockholders under [§19-2(1)1] of the KOSDAQ Market Listing Regulations and the preparation of measures to protect shareholders under subparagraph 2 of the same paragraph; or

② When a resolution has been made regarding whether to approve the listing of a subsidiary, etc. pursuant to [§19-2(1)4] of the KOSDAQ Market Listing Regulations. In this case, the report must include matters concerning the measures to protect stockholders under subparagraph 2 of the same paragraph, the results of communication with stockholders under subparagraph 3 of the same paragraph, or the confirmation of whether stockholders consent. However, where stockholder consent pursuant to subparagraph 3 of the same paragraph has not been confirmed, the reason for such non-confirmation shall be stated. [July 31, 2026]

(b) When there have been any events or decisions falling under the followings, which concern the existence of the concerned KOSDAQ-listed corporation:

(i) Case where a bill or check issued by the corporation is dishonored or its current account transactions with a bank are suspended or banned;

(ii) Case of falling under any of the followings pursuant to the Debtor Rehabilitation and Bankruptcy Act;

a) Case where an application for commencement of rehabilitation procedures is filed or dismissed;

b) Case where a decision on commencement of rehabilitation procedures is made or a decision on commencement of rehabilitation procedures is cancelled;

c) Case where a rehabilitation plan is approved or disapproved;

d) Case where an application for conclusion of rehabilitation procedures is filed or the court ruling on conclusion of rehabilitation procedures is made; or an application for discontinuation of rehabilitation procedures is filed or the court ruling on discontinuation of rehabilitation procedures is made;

e) Case where an application for bankruptcy is filed or an application for bankruptcy is dismissed or a bankruptcy is declared.

(iii) Case where any of the reasons for dissolution under Article 517 of Commercial Act or other Acts has occurred;

(iv) Case where it is confirmed that the corporation has requested its correspondent bank or the financial creditor for management control or withdrawn such request, or the correspondent bank or financial creditor has commenced the management control of the corporation or suspended or cancelled such management control; and

(v) Case where an agreement has been entered into with the principal creditor bank or the council of financial creditors for the purpose of implementing the plan for management normalization.

(vi) [Deleted on July 22, 2015]

(vii) [Deleted on December 23, 2005]

(c) When it is confirmed that the following legal proceedings for lawsuits, etc. have been filed or applied for against the concerned KOSDAQ-listed corporation, or that there has been a judgment or decision on such lawsuits, etc. Provided that, in the case of (v), when it is confirmed that there has been a filing of a lawsuit (including an appeal to a higher court) or an application for permission, a decision permitting a lawsuit, a decision not permitting a lawsuit; or an application for, decision and judgment on a withdraw from a lawsuit (including a withdraw from an appeal), reconciliation, or renunciation of a claim (including renunciation of the appeal rights):

(i) A lawsuit filed with respect to the validity of issuance of the stocks listed or to be listed issued by the corporation, or the change of the rights of such stocks and the forgery or alternation of such stocks;

(ii) A lawsuit (including non-legal claims) in which the amount of the claim is 5% (3% for large-sized corporations) or more of its equity capital;

(iii) [Deleted on December 23, 2005]

(iv) Minority shareholder's application for the court permission to call general shareholders' meeting for the appointment or dismissal of officers; a lawsuit filed for nullification or revocation of the resolution of the general shareholders' meeting on the appointment and dismissal of officers; or a lawsuit filed in relation to the management disputes concerning the appointment or dismissal of officers or the performance of duties, including an application for the provisional disposition for suspension of the performance of duties of officers, etc.; and

(v) A lawsuit filed pursuant to the Securities-related Class Action Act.

(d) When there has been a resolution of the board of directors or the general shareholder's meeting to call a general shareholders' meeting. In such cases, the matters that may have significant influence on investment decisions, including changes in business objectives, appointment or dismissal of outside directors, appointment or dismissal of the auditor (including audit committee members), adoption or abolishment of the cumulative voting system, the ratio of votes in favor and against (including abstentions and invalid votes) for each agenda item at the general shareholders' meeting, etc. shall separately be stated. (Amended on January 28, 2026)

4. Besides the cases noted in subparagraphs 1 through 3, the case where there have been events or decisions concerning the operation, production activities, financial structure, or business activities, etc. of the concerned KOSDAQ-listed corporation which have or may have a significant influence on stock prices or investors' investment decisions. In such cases, the matters specified in [§26(1)] shall be excluded.

(2) [Deleted on December 23, 2005]

(3) The provisions of items (c)(iii) through (c)(v) of paragraphs (1)2 shall not apply to the KOSDAQ-listed corporations which fall under any of the followings: (Amended on September 8, 2006; January 28, 2009)

1. Banks under the Banking Act;
2. Investment traders or investment brokers under the Act;
3. Mutual savings banks under the Mutual Savings Banks Act;
4. Lessors established pursuant to the Specialized Credit Finance Business Act;
5. Public purpose corporations provided for in Article 152(3) of the Act; and
6. [Deleted on September 8, 2006]
7. New technology venture capitalists registered pursuant to the Specialized Credit Finance Business Act.

(4) The detailed guidelines for deciding whether or not to have a considerable influence on stock prices or investors' investment decisions mentioned in paragraph (1)4 shall be set forth in the Enforcement Rules. [December 30, 2015]

(5) [Deleted on April 29, 2015]

## **§6-2. Matters of Consolidated Subsidiaries to Be Disclosed**

(1) In cases where the consolidated subsidiary falls under any of the followings, the KOSDAQ-listed company, which is the parent company, shall report to the Exchange the details of the relevant fact or decision by the day following the day when the cause for reporting has occurred. Provided that, in cases where a consolidated subsidiary located in Korea falls under

Subparagraph 1, 3 or 4 of Article 161(1) of the Act, the reporting shall be made on the day when the cause for reporting has occurred. (Amended on September 11, 2013; July 22, 2015)

1. Case where the principal consolidated subsidiary falls under Subparagraph 1, 3, 4 or 6 of Article 161(1) of the Act and Subparagraph 1 or 3 of Article 171(3) of the Enforcement Decree of the Act;
2. As a case of falling under Article 161(1)2 of the Act, the case where the sales amount of the suspended business of the consolidated subsidiary is at least 10% of the sales amount of the parent company for the latest fiscal year;
3. As a case of falling under Article 161(1)5 of the Act, the case where the amount of capital increase or reduction of the consolidated subsidiary is at least 10% of the equity capital of the parent company as of the end of the latest fiscal year;
4. As a case of falling under Article 161(1)7 of the Act, the case where it falls under any of the followings. Provided that the requirements for an essential acquisition and transfer shall be the one noted in each of the followings:
  - (a) Case where the amount of assets of the business division to be acquired or transferred by the consolidated subsidiary (referring to the book value or the transaction value, whichever is larger; the same hereinafter in subparagraphs 4(d) and 7) is at least 10% of the total amount of assets of the parent company as of the end of the latest fiscal year;
  - (b) Case where the sales amount of the business division to be acquired or transferred by the consolidated subsidiary is at least 10% of the sales amount of the parent company as of the end of the latest fiscal year;
  - (c) Case where the amount of liabilities to be assumed by a consolidated subsidiary following acquisition of the business is at least 10% of the total amount of liabilities of the parent company as of the end of the latest fiscal year; and
  - (d) Case where the amount of assets to be acquired or transferred by the consolidated subsidiary is at least 10% of the total amount of assets of the parent company as of the end of the latest fiscal year.
5. As a case of falling under Article 161(1)9 of the Act, the case where the consolidated subsidiary has made a decision on the issuance of exchangeable bonds that are eligible to be exchanged with the stocks of the parent company. (Amended on October 1, 2025)
6. As a case of falling under Article 171(3)2 of the Enforcement Decree of the Act, the case where the amount of claims brought in respect to the lawsuit filed against the consolidated subsidiary is at least 10% of the total assets of the parent company as of the end of the latest fiscal year. (Amended on October 1, 2025)
7. As a case of falling under Article 171(3)5 of the Enforcement Decree of the Act, the case where the amount of assets to be transferred by the consolidated subsidiary is at least 10% of the total amount of assets of the parent company as of the end of the latest fiscal year.

8. Cases where a consolidated subsidiary located in Korea falls under any of items (i) through (iii) of [§6(1)1(f)]. [October 1, 2025]

(2) In cases where the matters to be reported noted in each subparagraph (excluding subparagraph 8) of paragraph (1) duplicate any of the following items, a KOSDAQ-listed corporation which is the parent company shall make the reporting pursuant to paragraph (1): (Amended on September 11, 2013; October 1, 2025)

1. The matters to be reported noted in [§7]. Provided that, in cases where an identical matter has been reported pursuant to [§7(3)], it shall be deemed that the reporting was made pursuant to paragraph (1); and

2. The matters to be reported noted in item (b)(vii) or (c)(iv) of [§6(1)2].

(3) In the case where a KOSDAQ-listed corporation that is both a holding company and a parent company reports the matters stipulated in paragraph (1)8 in accordance with [§7], it shall be deemed to have reported such matters pursuant to paragraph (1). [October 1, 2025]

[February 22, 2013]

## **§7. Matters of Subsidiaries to Be Disclosed**

(1) In cases where a subsidiary of a KOSDAQ-listed holding company, of which the value of the stocks (referring to the value reported in the balance sheet as at the latest fiscal year, or the purchasing price, if the subsidiary was admitted during the fiscal year; the same hereinafter in this Article) held by the concerned holding company is 10% or more of total assets of the concerned holding company at the end of the latest fiscal year, falls under any of the subparagraphs of [§6(1)] {excluding (iv) and (v) of subparagraph 2(a), (i) of subparagraph 3(a) in the case of change of the largest shareholder, and subparagraph 3(d)}, the concerned KOSDAQ-listed holding company shall report the details of such fact or decision by the day following the date on which the cause for reporting occurred. Provided that, in the case of falling under any of items (i) through (iii) of [§6(1)1(f)] and items (i) through (iii) of [§6(1)3(b)], the report shall be made on the day on which the cause for reporting occurred. (Amended on December 23, 2005; January 28, 2009; July 22, 2015; October 1, 2025)

(2) In cases where a subsidiary, of which the value of the stocks held by a KOSDAQ-listed holding company is less than 10% of the total assets of the concerned KOSDAQ-listed holding company at the end of the latest fiscal year, falls under any of items (i) through (iii) of [§6(1)3(b)], the concerned KOSDAQ-listed holding company shall report the details of fact or decision by the day following the date on which the cause for reporting occurred, and in cases where the subsidiary falls under any of items (i) through (iii) of [§6(1)1(f)], the holding company shall report the details on the day on which the cause for reporting occurred. (Amended on December 23, 2005; January 28, 2009; October 1, 2025)

(3) In cases where a subsidiary of a holding company is a listed corporation and the concerned holding company has submitted a written request in the manner stipulated in the Enforcement Rules, it shall be deemed that the holding company has made the reporting pursuant to

paragraphs (1) and (2) if the concerned subsidiary submits the reports noted in each subparagraph of [§6(1)]. [April 21, 2010]

**§8. [Deleted on February 22, 2013]**

**§9. [Deleted on February 22, 2013]**

**§9-2. Matters to be reported by Special Purpose Acquisition Companies**

(1) In cases where a KOSDAQ-listed special purpose acquisition company falls under any of the following subparagraphs, in addition to falling under any subparagraph of [§6(1)], the concerned special purpose acquisition company shall report the details of the relevant event or decision to the Exchange on the day when the ground for reporting has occurred. Provided that the event or decision noted in subparagraphs 3 and 5 shall be reported to the Exchange by the day following the date of occurrence of the ground for reporting.

1. When there has been a decision to amend the articles of incorporation;
2. When there has been a decision concerning appointment or dismissal of executive officers;
3. When an executive officer resigns;
4. When, after a decision on merger has been made, the concerned decision is cancelled or denied;
5. When the details of an agreement for deposit/trust of funds entered into with a securities finance company or trust business entity has been amended or the deposit/trust ratio of funds has been changed; and
6. When an event that the fund deposited or entrusted is withdrawn.

(2) In cases where the matters to be reported under paragraph (1) overlap with the matters to be disclosed under [§6(1)], the KOSDAQ-listed special purpose acquisition company shall file a report in accordance with [§6(1)], and in the case where the matters to be reported under [§6(1)] fall under each of the following subparagraphs, such fact shall be included in the report:

1. Case of falling under each of the followings when filing a report according to item (a)(viii) of [§6(1)3] subsequent to making a decision to merge with a stock-listed corporation prescribed in Article 9(15)3 of the Act (hereinafter referred to as the “listed corporation”):
  - (a) Case where the merger value or the total amount of assets reported in the balance sheet as of the end of the latest fiscal year is less than 80% of the amount deposited or entrusted with the securities finance company or trust business entity;
  - (b) Case where the listed corporation has been designated as an administrative issue under

[§75] of the KOSPI Market Listing Regulation and [§53] of the KOSDAQ Market Listing Regulation;

(c) Case where the listed corporation has a special interest in the concerned KOSDAQ-listed special purpose acquisition company and therefore the merger with the listed corporation is restricted pursuant to item (a)(iv) of [§73(2)9] of the KOSDAQ Market Listing Regulation; and

(d) Case where a new corporation is established according to a merger..

2. Case of falling under each of the followings when filing a report according to item (d) of [§6(1)3] subsequent to adopting a resolution at the general meeting of shareholders held for the approval of the merger pursuant to Article 522 of the Commercial Act:

(a) Case where the disposal of the stocks held by the management, etc. is restricted for a specified period of time after the merger;

(b) Case where the shareholders, etc. as of the date of application for listing eligibility review under [§69(2)] of the KOSDAQ Market Listing Regulation (hereinafter referred to as the “shareholders, etc. as of the application date for listing eligibility review”) exercise the voting rights pursuant to Article 522 of the Commercial Act, or in order not to influence the outcome of voting rights exercised by the number of shares, which is obtained by subtracting the number of shares held by the shareholders, etc. as of the application date for listing eligibility review from the number of shares participated in the concerned general meeting of shareholders (including the number of shares used written ballot), by delegating the rights to the Korea Securities Depository, do not exercise the voting rights according to the ratio of “for” and “against” (including the number of abstention and invalid);

(c) Case where the shareholders, etc. as of the application date for listing eligibility review has exercised the appraisal rights prescribed in Article 522-3 of the Commercial Act; and

d. Case of falling under items (a) through (d) of subparagraph 1.

[December 18, 2009]

## **Section 2. Inquired Disclosure**

### **§10. Inquired Disclosure**

(1) In order to verify the matters specified in the provisions of [§6] through [§9-2], [§20(1)], [§26] and Section 3 of CHAPTER II or other matters equivalent thereto, which are the rumors or news, etc. stipulated in the Enforcement Rules, the Exchange shall request the concerned KOSDAQ-listed corporation to make an inquired disclosure and shall make public the fact about such request for inquired disclosure and the details thereof through its disclosure media.

(Amended on December 23, 2005; January 28, 2009; December 18, 2009; February 22, 2013)

(2) Notwithstanding the provisions of paragraph (1), in cases where the price and trading volume of a KOSDAQ-listed issue meet the criteria that are established separately by the Exchange, even though there are no rumors or news, etc., the Exchange may request for an inquired disclosure on the existence of any material information specified in the Enforcement Rules, and upon receiving a request for inquired disclosure, the KOSDAQ-listed corporation shall respond to the request by the day following the day when the request was received. Provided that, in cases where the price and trading volume of the KOSDAQ-listed issue once again meet the criteria under the provisions of the main sentence within fifteen (15) days from the date of the most recent request for inquired disclosure under the provisions of the main sentence, the Exchange may not make the request for inquired disclosure. (Amended on December 23, 2005; January 28, 2009; December 29, 2011)

(3) A KOSDAQ-listed corporation that has been requested to confirm the fact under the provisions of paragraph (1) shall submit to the Exchange the details of disclosure by the methods under the provisions of [§5] by the afternoon of the same day if the request was made in the morning; or by the morning of the next day (by the next day, in the case of receiving the request for inquired disclosure for the reasons under [§37(2)1 through 6]) if the request was made in the afternoon. (Amended on December 23, 2005; September 12, 2008; January 28, 2009)

(4) In cases where it is necessary as the request for inquired disclosure made pursuant to paragraph (1) is related to item (a)(i), (a)(viii) or (a)(ix) of [§6(1)3], a KOSDAQ-listed corporation shall make the inquired disclosure after obtaining the confirmation of the largest shareholder, etc. (Amended on January 28, 2009; March 2, 2011)

(5) Notwithstanding the provisions of paragraph (1), when the substance of the rumors and news is about the matter that was disclosed by the concerned corporation within the last one (1) month {three (3) months for the matters under items (a)(i), (a)(viii) and (a)(ix) of [§6(1)3] or other matters equivalent thereto}, the Exchange may not make the request for inquired disclosure. (Amended on January 28, 2009; March 2, 2011)

(6) When replying to the request for inquired disclosure under paragraph (2) that there is no material information specified in the Enforcement Rules, KOSDAQ-listed corporations shall make the disclose by clearly indicating if any matters falling under each subparagraph of [§6(1)] exist or the presence of such information is being examined, as well as that the impact of such information on the stock price and trading volume has been considered, and attaching a written confirmation of the disclosure by the representative director. [December 29, 2010]

## **§11. Interim Disclosure**

(1) A KOSDAQ-listed corporation may make a disclosure that it is in the process of making a decision on the matter inquired pursuant to the provisions of [§10] (hereinafter referred to as the “interim disclosure”). (Amended on December 23, 2005; January 28, 2009)

(2) A KOSDAQ-listed corporation that has made an interim disclosure pursuant to the provisions of paragraph (1) shall re-disclose the details of the progress in the process of decision-making from the date of interim disclosure to the time of final disclosure, within one (1) month from the date of interim disclosure. Provided that, when it is deemed practically not possible to make the re-disclosure of the final decision or the progress within one (1) month from the date of the interim disclosure, the Exchange may have the concerned KOSDAQ-listed corporation make the re-disclosure within the period specified in the interim disclosure. (Amended on December 23, 2005; January 28, 2009)

(3) A KOSDAQ-listed corporation that makes an interim disclosure pursuant to the provisions of paragraphs (1) and (2) shall make such disclose by attaching the material proving the fact that the decision is being made. Provided that, if the Exchange deems that it is difficult to submit the verification materials for such reasons as business confidentiality, the disclosure may be made by attaching a written confirmation of the representative director. [December 29, 2010]

### **Section 3. Fair Disclosure**

#### **§12. Information Subject to Fair Disclosure, etc.**

(1) When the fair disclosure information provider of a KOSDAQ-listed corporation selectively releases the matters falling under any of the followings (hereinafter referred to as the “information subject to fair disclosure”) to a specific receiver of fair disclosure information, the concerned corporation shall notify the Exchange of such fact and the details of the information released: (Amended on May 11, 2007; January 28, 2009; December 18, 2009; February 22, 2013)

1. Future business plans or management plans;
2. Projections or predictions for sales, operating income/losses, profits/losses before tax from continuing operations or net income/losses;
3. Business performance such as sales, operating income/losses, profits/losses before tax from continuing operations, or net income/losses related to the annual reports, etc. that are released before submitting the annual reports, etc. pursuant to [§19]; and
4. From among the matters related to those set forth in [§6] through [§9-2], the matters for which the reporting deadlines have not yet passed.

(2) The “fair disclosure information provider” mentioned in this Regulation shall refer to the person falling under any of the followings:

1. Relevant KOSDAQ-listed corporations and their agents;
2. Executive officers of a relevant KOSDAQ-listed corporation (including directors, auditors

or any persons who are virtually equivalent thereto); and

3. Employees of a relevant KOSDAQ-listed corporation who have access to the information subject to fair disclosure (referring to the staff members of a department that handles the matters concerning the information subject to fair disclosure or of a department that is responsible for disclosure).

(3) The “receivers of fair disclosure information” mentioned in this Regulation shall refer to the persons falling under any of the followings: (Amended on May 11, 2007; January 28, 2009; April 29, 2015)

1. Investment traders, investment brokers, investment companies, collective investment business entities, investment advisory business entities and discretionary investment business entities prescribed in the Act and their officers and employees, and persons who are in the relationship of delegation or in partnership with them;

2. The professional investors (excluding those specified in subparagraph 1) and their executive officers and employees;

3. Foreign institutional investors who are engaged in the same or similar businesses as the businesses of the entities under subparagraphs 1 and 2, and their executive officers and employees;

4. Broadcasting business operators under the Broadcasting Act and news agencies such as newspapers and communications under the Act on the Promotion of Newspapers, Etc. (including domestic and foreign corporations that conduct the same or similar businesses) and their executive officers and employees;

5. Operators of internet securities information sites that utilize the information and communications networks under the Act on Promotion of Information and Communications Network Utilization and Information Protection, Etc. and their executive officers and employees;

6. Holders of stocks of a KOSDAQ-listed corporation, who are expected to buy or sell the concerned stocks by exploiting the information subject to fair disclosure; and

7. In addition, the persons who are equivalent to those noted in subparagraphs 1 through 6 and specified by the Exchange.

(4) The notification under paragraph (1) shall be made before the information is provided to the receivers of fair disclosure information. Provided that, in cases where such information was released due to a minor negligence or an error on the part of the provider of fair disclosure information, such fact shall be notified on the day of its occurrence, and in cases where it is substantiated that such release came about without knowledge of the officers of the concerned KOSDAQ-listed corporation, it may be notified on the day when such fact became known. (Amended on January 28, 2009)

### **§13. Information of Subsidiaries subject to Fair Disclosure**

In cases where the fair disclosure information provider of a KOSDAQ-listed holding company provides the information subject to fair disclosure of its subsidiary to the receivers of fair disclosure information, the concerned listed holding company shall notify the Exchange of such fact pursuant to [§12] and [§14]. In such cases, the scope of subsidiaries shall be those subsidiaries, of which the value (in the case where the subsidiary was included during the fiscal year, the acquisition price) of the stocks held by the holding company stated in the balance sheet of the latest fiscal year is at least 10% of the total amount of assets of the holding company at the end of the latest fiscal year. (Amended on January 28, 2009)

### **§14. Notifying Methods**

(1) The notification under the provisions of [§12(4)] shall be made in accordance with the methods stipulated in [§5]. Provided that, in cases where the volume of the details to be notified are extensive, the Exchange may request the concerned corporation to notify the summary of the details and post such summary and the original document on the website, etc. of the concerned corporation. (Amended on January 28, 2009)

(2) In cases where the matters to be reported under [§12(1)4] overlap with the matters to be disclosed under the provisions of [§6] through [§9-2], the report shall be filed in accordance with the provisions of [§6] through [§9-2]. Provided that, in such cases, the report shall be file by the deadline noted in [§12(4)]. (Amended on January 28, 2009; December 18, 2009; February 22, 2013)

### **§15. Exceptions in Applying Fair Disclosure Obligations**

Notwithstanding the provisions of [§12] through [§14], in the case of falling under any of the following cases, the provisions of this Section shall not apply: (Amended on January 28, 2009)

1. Case where a fair disclosure information provider provides the information subject to fair disclosure to the persons specified in [§12(3)4] in response to a coverage for news reporting; and
2. Case where a fair disclosure information provider provides the information subject to fair disclosure to any of following persons:
  - (a) Any person, such as lawyer and certified public accountant, who is obligated to keep confidentiality in carrying out the responsibilities delegated to him/her in accordance with the agreement entered into with the concerned KOSDAQ-listed corporation;
  - (b) Any person who has clearly consented to keeping confidentiality of the information provided as a part of legitimate and routine duties;
  - (c) Any person who has obtained the license for credit rating businesses issued by the Financial Services Commission pursuant to Article 335-3 of the Act; or

(d) Any other persons who are equivalent to those specified in items (a) through (c) and are determined by the Exchange.

#### **§16. Indemnification for Predictions**

In cases where, with respect to the fair disclosure obligations regarding the future predictions or projections, a KOSDAQ-listed corporation makes fair disclosure in any of the following manners, the Exchange may not impose the disciplinary measures under the provisions of [§32], even if the actual performance does not match with the concerned predictions or projections: (Amended on January 28, 2009)

1. Having clearly indicated that the relevant statement or indication is a prediction;
2. Having clearly stated the grounds for the assumptions or judgments relating to the predictions or projections;
3. Having made it clear that the relevant statement or indication was made based on a rational ground or assumption; and
4. With regard to the relevant statement or indication, a clear warning note shall have been added saying that the predictions may differ from the actual performances.

#### **§17. Relationship with other Disclosure Obligations**

The fair disclosure obligations set forth in this Section shall not have any effect on other disclosure obligations under the provisions of this Part. (Amended on January 28, 2009)

#### **§18. Operational Guidelines**

The Exchange shall separately stipulate the matters necessary for enforcement of the matters specified in this Section.

### **Section 4. Submission of Annual Reports, Etc.**

#### **§19. Submission of Annual Reports, etc.**

(1) KOSDAQ-listed corporations shall submit to the Exchange the annual reports, half-yearly reports and quarterly reports prescribed in Articles 159, 160 and 165 of the Act (hereinafter referred to as the “annual reports, etc.”) by the statutory deadlines for submission. (Amended on January 28, 2009)

(2) [Deleted on February 22, 2013]

(3) [Deleted on January 28, 2009]

## **Section 5. Disclosure by Listed Foreign Corporations**

### **§20. Matters to be disclosed by Listed Foreign Corporations, etc.**

(1) In cases where any of the following events has occurred, a listed foreign corporation shall report to the Exchange the details of such event on the day when the ground for reporting has occurred [in the case of reporting to the exchange in home country (including the exchange in a third country, if the corporation is listed on the exchange in the third country; the same hereinafter), it shall be reported to the Exchange and the exchange in the home country at the same time]. Provided that, in the case where, due to an unavoidable reason, a reporting was made according to the manner stipulated in the Enforcement Rules, it shall be deemed that the reporting was made on the date of occurrence. In such cases, the deadline for the reporting noted in subparagraph 1 shall apply with the deadline of the relevant matter to be disclosed, but this provision shall not apply to the case where the reporting to the exchange in the home country is made before the reporting deadlines noted in subparagraph 1. (Amended on November 4, 2011; February 22, 2013; June 26, 2019; August 25, 2021)

1. Case of the matters specified in the provisions of [§6] through [§7] and [§26]. In such cases, in applying the provisions of [§7(1)], the scope of subsidiaries for which the foreign holding company is obligated to make reporting shall be the subsidiaries of which the total amount of assets at the end of the latest fiscal year is at least 10% the total amount of assets of the foreign holding company at the end of the latest fiscal year, and in the case of paragraph (2) of the same Article, it shall be the subsidiaries of which the total amount of assets at the end of the latest fiscal year is less than 10% of the total amount of assets of the foreign holding company at the end of the latest fiscal year;
2. Case of reporting to or notifying the exchange in the home country to provide the information necessary for investors' investment decisions;
3. Case where there have been any amendments in the statutes of the home country, which has a significant effect on the concerned listed foreign corporation or its shareholders, including restrictions on transfer of shares, nationalization of the listed foreign corporation, etc.;
4. Case where the exchange in the home country or the securities related authority performs a tender offer or stabilizing operation against the stocks of the concerned listed foreign corporation;
5. Case where the concerned listed foreign corporation has been imposed of disciplinary measures by the securities related authority or the exchange in the home country for violation of related statutes, or where it was imposed of such measures as trading suspension or resumption, and delisting, etc. (including the case where the concerned corporation has

requested such measures);

6. Case where it has received a request for an inquired disclosure from the exchange in the home country;

7. Case where there has been a decision on the acquisition or disposal of DRs based on the stocks of the concerned listed foreign corporation;

8. Case where a listed foreign holding company and its subsidiary (limited to the corporation in which the foreign holding company invested; the same hereinafter) have different bases of incorporation and the subsidiary has received measures of restricting the remittance of foreign currencies to the listed foreign holding company or other measures (including the case where the details of measures have been changed) equivalent thereto from the government of the home country; and

9. Case where an auditor was appointed (limited to the case of appointing an auditor other than the existing auditor), dismissed or substituted in accordance with [§15(2) through (7)] of the KOSDAQ Market Listing Regulation; and

10. In addition to subparagraphs 1 through 9, case where there occurs an event which has a significant impact on the domestic securities market and the investors.

(2) Notwithstanding the provisions of [§10(3)], listed foreign corporations shall respond to a request for inquired disclosure by the day following the day of receiving the request. Provided that, from among the matters subject to inquired disclosure, the scope of news may be set forth in the Enforcement Rules. (Amended on January 28, 2009)

(Wholly amended on December 23, 2005)

## **§21. Matters to be reported by Listed Foreign Corporations**

In cases where there has been an event or decision on the matters set forth in the Enforcement Rules, which the Exchange deems necessary for the issuance and management of securities, etc., listed foreign corporations shall report the details of such event or decision to the Exchange without delay. [December 23, 2005] (Amended on January 28, 2009)

## **§22. Designation, etc. of Disclosure Officer and Disclosure Agent of Listed Foreign Corporations**

(1) Listed foreign corporations (including foreign holding companies located in Korea; the same hereinafter in this Article) shall designate each of the officer in charge of disclosure (referred to as the “disclosure officer”) and the disclosure agent under [§44-2(1)], and one or more of the staff members in charge of disclosure (referred to as “disclosure staff”) in order to make the reporting under [§20] or [§21]. Provided that, in cases where there are two or more of disclosure staff designated, and one of them meets the requirements specified in the Enforcement Rules, the disclosure agent may not be designated. (Amended on January 28,

2009; September 17, 2010; May 2, 2018; May 2, 2019)

(2) For the disclosure agents of listed foreign corporations, the provisions of paragraphs (2) through (5) of [§44-2] shall apply *mutatis mutandis*. (Amended on May 2, 2019)

(3) [Deleted on May 2, 2019]

(4) [Deleted on May 2, 2019]

(5) [Deleted on May 2, 2019]

[December 23, 2005]

### **§23. Disclosure Language, etc. of Listed Foreign Corporations**

(1) The reporting under the provisions of [§20] and [§21] shall be made in Korean language. Provided that, when it acknowledges that a listed foreign corporation is not able to make the reporting in Korean because of unavoidable causes, the Exchange may let the concerned listed foreign corporation report in English and request the corporation to file the report in Korean without delay when the concerned causes are resolved. (Amended on January 28, 2009)

(2) When a listed foreign corporation files a report under the provisions of [§20] and [§21], in principle, the currency of home country shall be used together with the Korean currency converted using the basic exchange rates set forth in the Enforcement Rules. Provided that, in cases where it acknowledges that the concerned listed foreign corporation is not able to report in Korean currency due to unavoidable causes, the Exchange may let the report be filed in the currency of home country. (Amended on January 28, 2009)

[December 23, 2005]

### **§24. Setting Disclosure Deadlines for Listed Foreign Corporations, etc.**

The disclosure deadlines for listed foreign corporations shall be set based on the Korean time when the disclosure obligation has occurred, but when it is deemed inevitable, the Exchange may operate the disclosure deadlines differently, taking into consideration the time difference. [December 23, 2005] (Amended on January 28, 2009)

### **§25. Exemptions in applying Measures against Unfaithful Disclosure by Listed Foreign Corporations**

In dealing with the unfaithful disclosure by a listed foreign corporation, the Exchange shall apply the measures that are equivalent to the ones applied to the Korean corporations, but this provision may not apply in consideration of the geographical conditions and practices in the home country of the concerned listed foreign corporation. [December 23, 2005] (Amended on January 28, 2009)

## CHAPTER III. VOLUNTARY DISCLOSURE

### §26. Voluntary Disclosure

(1) In the event that a matter, in addition to the material business matters mentioned in [§6], that is deemed to have influence on the management and property of a KOSDAQ-listed corporation and the investors' judgment, and stipulated in the Enforcement Rules, occurs or a decision thereon is made, the relevant corporation may report the details of the matter to the Exchange by the day following the day when the ground for reporting has occurred. (Amended on January 28, 2009)

(2) [Deleted on January 28, 2009]

[December 23, 2005]

### §26-2. Explanation for Rumors and News, etc.

(1) In cases where a KOSDAQ-listed corporation intends to explain the rumors or news, etc. concerning the matters falling under any of the followings, it may report the details to the Exchange. Provided that this shall not apply in the case where the corporation was requested for inquired disclosure pursuant to [§10(1)].

1. The matters specified in [§6] through [§9-2], [§12], [§13] and [§26]; and

2. Other matters that are deemed to have an effect on the stock price and trading volume of the KOSDAQ-listed corporation.

(2) The provisions of [§11] shall apply *mutatis mutandis* to the reporting under paragraph (1).

(3) The matters necessary in relation to the explanation of the rumors or news pursuant to paragraph (1), such as the target corporations, deadline for reporting, and the scope of rumors or news, etc. subject to explanation shall be specified in the Enforcement Rules.

[July 22, 2015]

## **CHAPTER IV. UNFAITHFUL DISCLOSURE**

### **Section 1. Types of Unfaithful Disclosure**

#### **§27. Non-fulfillment of Disclosure Obligations**

In cases where a KOSDAQ-listed corporation falls under any of the following subparagraphs, the Exchange shall deem that the corporation has failed to fulfill the disclosure obligations. (Amended on February 22, 2013; July 22, 2015)

1. Case of failing to make disclosure of the matters to be disclosed under the provisions of [§6] through [§11], Section 3 of CHAPTER II, [§20] and [§30] by the relevant reporting deadlines;
2. Case of making false or incorrect disclosure of the matters to be disclosed under the provisions of [§6] through [§11], Section 3 of CHAPTER II, [§20], [§26], [§26-2] and [§30], or making a disclosure without stating material matters;
3. Case where, even though the causes for withholding of disclosure have been resolved as specified in [§42(3)], the disclosure details withheld are not disclosed; and
4. Case where, despite the request for correction made by the Exchange pursuant to [§30-2], the corporation has failed to make the disclosure after correcting the disclosure details by the relevant deadline for correction.

(Wholly amended on January 28, 2009)

#### **§28. Reversals of Disclosure**

(1) In cases where a KOSDAQ-listed corporation falls under any of the following subparagraphs, the Exchange shall deem that the concerned corporation has reversed its previous disclosure: (Amended on February 22, 2013; July 22, 2015)

1. Case of making a disclosure that completely cancels or denies the details already disclosed pursuant to the provisions of [§6] through [§11], Section 3 of Chapter II, [§20], [§26] and [§26-2] or other disclosure with a content equivalent thereto;
2. Case where, within one (1) month after having made a disclosure that denies the rumors, etc., pursuant to the provisions of [§10(1)], [§20(2)] and [§26-2(1)], the corporation has made a decision that is contrary to what have already been disclosed; and
3. Case where, within fifteen (15) days after making a disclosure in response to the request for inquired disclosure under the provisions of [§10(2)], the corporation makes a disclosure of the matters other than those disclosed in the inquired disclosure, which are specified in the Enforcement Rules.

(2) In addition to paragraph (1), in the case of falling under any of the following subparagraphs, the Exchange shall deem such case as a reversal of disclosure after reviewing it: [December 29, 2010] (Amended on February 22, 2013; July 22, 2015)

1. Case where, within fifteen (15) days after having made an inquired disclosure in response to the request under the provisions of [§10(2)], the corporation has made a disclosure of the matters specified in the Enforcement Rules other than those disclosed in the inquired disclosure, which is deemed to have affected the stock price and trading volume;

2. Case where the corporation has failed to make the final disclosure by the deadline for re-disclosure under the provisions of [§11(2)] and [§26-2(2)]; and it is not accepted that there is any logical reason for the delay in finalizing the interim disclosure stating that the decision is being made;

3. Case where the corporation has changed, suspended or cancelled the whole or a material part of the details of an interim disclosure after having made such interim disclosure pursuant to the provisions of [§11], [§26-2(2)] and [§30]; and it is not accepted that there is any logical reason for the change, suspension or cancellation of the decision;

4. As a case of suspending, cancelling or denying the whole or a material part of the disclosed details after making a disclosure denying the details of rumors, etc. pursuant to the provisions of [§10(1)], [§20(2)] and [§26-2(1)] or making a disclosure similar thereto, the case where it falls under any of the followings and is deemed that the disclosure reversal period has been circumvented because, in view of the decision making process, it was possible to make the prediction, adjustment, etc. in advance;

(a) Case of making the disclosure within fifteen (15) days from the date one (1) month has passed after the disclosure of denial; and

(b) Case where the disclosure is made after the period noted in item (a) has elapsed; and the Exchange deems that it is necessary to examine whether the disclosure was reversed in view of the factors such as the importance of the disclosure and its impact on the investors.

5. As a case of disclosing the matters specified in the Enforcement Rules, which are other than those disclosed in response to the request for inquired disclosure pursuant to [§10(2)], within seven (7) days from the date fifteen (15) days have elapsed after making the inquired disclosure, the case where it is deemed that the disclosure reversal period has been circumvented because, in view of the decision making process, it was possible to make the prediction, adjustment, etc. in advance.

(3) When making the review on where the disclosure was reversed or not pursuant to paragraph (2), the Exchange shall notify the schedule and main procedures of the review to the concerned corporation without delay, and if it is deemed necessary for the review, the Exchange may request the concerned corporation to submit the relevant materials and opinion statement and consent a site inspection, etc. [December 29, 2010]

(4) The criteria, methods and procedures for reviewing the reversal of disclosure pursuant to paragraph (2) and other necessary matters shall separately be determined by the Exchange. [December 29, 2010]

## **§29. Making Changes to Existing Disclosure**

In cases where a KOSDAQ-listed corporation falls under any of the following subparagraphs, the Exchange shall deem that the material contents of a disclosure made by the concerned corporation have been changed: (Amended on December 23, 2005; May 11, 2007; January 28, 2009; February 22, 2013; July 22, 2015; December 28, 2016; May 2, 2018; November 13, 2024)

1. Case where the corporation has made a disclosure by changing the amount of acquisition or transfer by 50% or more, in the details of the disclosure on the acquisition or transfer of business made pursuant to the provisions of [§6(1)3(a)(viii)] or [§6-2(1)4];
2. Case where the corporation has made a disclosure by changing the ratio of merger, split-off or merger after split-off by 20% or more, in the details of the disclosure made pursuant to the provisions of [§6(1)3(a)(viii)] or [§6-2(1)1];
3. Case where the corporation has made a disclosure by changing the ratio of share allotment, the number of shares to be issued or the issuance amount by 20% or more, or changing the payment date by six (6) months or more (limited to the case of postponement), in the details of the disclosure on the capital increase made pursuant to [§6(1)2(a)(i)] or [§6-2(1)3];
4. Case where, among the disclosure contents pursuant to [§6(1)2(e)(iv)], the amount reported for acquisition or disposal within the scheduled period for acquisition or disposal of treasury stocks falls short of twenty (20) percent or more of the amount disclosed. Provided that this provision shall not apply to the case where the treasury stocks are acquired in excess of the amount planned to acquire; (Amended on July 1, 2026)
5. Case where the corporation has made a disclosure by changing the stock dividend ratio by 20% or more, in the details of the disclosure made pursuant to [§6(1)2(e)(iv)];
6. Case where the corporation has made a disclosure by changing the amount of dividends per share (in the case of differential dividends, it shall be based on the dividends paid to minority shareholders and in the case of dividends in kind, it shall be the amount converted into cash) by 20% or more, in the details of the disclosure made pursuant to [§6(1)2(e)(v)];
7. Case where the corporation has made a disclosure by changing the investment amount by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(b)(iv)];
8. Case where the corporation has made a disclosure by changing the amount of acquisition or disposal of the shares issued by other corporations or the investment certificates by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(b)(vi)] or [§6-2(1)4];
- 8-2. Case where the corporation has made a disclosure by changing the amount of acquisition

or disposal of equity-related bonds by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(b)(vi)] or [§6-2(1)4];

9. Case where the corporation has made a disclosure by changing the ratio of stock split or reverse stock split by 20% or more, in the details of the disclosure made pursuant to [§6(1)2(a)(iv)];

10. Case where the corporation has made a disclosure by changing the stock issuing amount, acquisition amount and/or sale amount of corporate bonds acquired before maturity, conversion price or exercise price of subscription rights by 50% or more, or changing the payment date by six (6) months or more (limited to the case of postponement), in the details of the disclosure made pursuant to [§6(1)2(a)(vi)] or [§6-2(1)5]; (Amended on October 1, 2025)

11. [Deleted on December 23, 2005]

12. Case where the corporation has made a disclosure by changing the amount of collateral provided and the amount of debit guarantee by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(c)(iv)];

13. Case where the corporations has made a disclosure by changing the amount of loans by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(c)(i)];

14. [Deleted on December 23, 2005]

15. Case where the corporation has made a disclosure by changing the amount of liability assumed or debts forgiven by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(c)(iii)];

16. Case where the corporation has made a disclosure by changing the ratio of capital reduction, the number of capital stocks reduced or the number of stocks retired by 20% or more, in the details of the disclosure on the capital reduction or stock retirement made pursuant to [§6(1)2(a)(i) & (ii)] or [§6-2(1)3];

17. Case where the corporation has made a disclosure by changing the amount of acquisition or disposal of tangible assets by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(b)(v)] or [§6-2(1)4];

18. Case where an event falling under any of the followings has occurred in the details of the disclosure made pursuant to the provisions of [§6(1)1(c)];

(a) Where the corporation has made a disclosure by changing the contract amount by 50% or more; or

(b) Where it has been confirmed that the amount of contract executed from the commencement date of the contract period to the date of doubling the contract period [if it is less than one (1) year, it shall be the day when it becomes one (1) year from the

commencement date] is less than 50/100 of the original contract amount.

19. Case where the corporation has made a disclosure by changing the amount of prepayment, provisional payment or cash loan by 50% or more, in the details of the disclosure made pursuant to [§6(1)2(c)(v)];

20. [Deleted on December 23, 2005]

21. [Deleted on May 11, 2007]

22. Case where the details disclosed pursuant to the provisions of [§7] and Section 3 of CHAPTER II fall under subparagraphs 1 through 21;

23. Case where the corporation has made a disclosure by changing the amounts, ratios, or the numbers of issued shares by 50% or more, in the details of the disclosure made pursuant to [§26] and [§26-2]; and

24. In addition to subparagraphs 1 through 23, cases where the corporation has made a disclosure by changing the disclosed details that the Exchange deems important.

### **§30. Reporting of Changes to Existing Disclosure**

In cases where a KOSDAQ-listed corporation, after making a disclosure pursuant to the provisions of [§6] through [§11], [§20], [§26] and [§26-2] or disclosing the matters under the provisions of Section 3 of CHAPTER II, cancels or changes the details of such disclosures (excluding the cases of minor changes to [§6(1)(c)], which are set forth in the Enforcement Rules), the concerned corporation shall report such case to the Exchange by the day when the ground for reporting has occurred. (Amended on December 23, 2005; January 28, 2009; December 29, 2010; February 22, 2013; April 29, 2015; July 22, 2015; December 28, 2016)

#### **§30-2. Request for Correction of Disclosure exempted from Verification Procedure**

(1) In cases where the details disclosed pursuant to [§5(4)] by a corporation exempted from verification procedure falls under any of the subparagraphs of [§41], the Exchange may request the concerned corporation to correct the details disclosed.

(2) A KOSDAQ-listed corporation that has received the request for correction under paragraph (1) shall make the corrected disclosure by the afternoon of the same day if the correction request was received in the morning and by the morning of the next day if the correction request was received in the afternoon.

[February 22, 2013]

### **§31. Exceptions in applying Provisions on Unfaithful Disclosure**

(1) Notwithstanding the provisions of [§27] through [§29], the Exchange shall not regard it as an unfaithful disclosure if it falls under any of the followings: (Amended on January 28, 2009)

1. When it is unavoidable under other statutes, regulations, etc.;
2. When a natural disaster, sudden and significant change in the economic situations or other incidents equivalent thereto have occurred;
3. Case where it is deemed necessary for the public interests and protection of investors; and
4. In addition, cases where the concerned KOSDAQ-listed corporation proves that it is not culpable for the cause, or the Exchange deems it to be a minor matter that has no or little influence on the stock price.

(2) [Deleted on December 23, 2005]

(3) In applying the provisions of paragraph (1), the Exchange may request the relevant corporation to submit the materials related to the disclosed details.

## **Section 2. Measures against Unfaithful Disclosure**

### **§32. Procedures for Designation as Unfaithful Disclosure Corporations, etc.**

(1) When a KOSDAQ-listed corporation falls under the provisions of [§27] through [§29], the Exchange shall issue a prior notice on the fact that the concerned corporation falls under the condition for being designated as an unfaithful disclosure corporation and post such fact on its disclosure media and notify (including sending via facsimile) the concerned corporation of the fact. (Amended on December 23, 2005; January 28, 2009)

(2) A corporation that has received a prior notice on designation as unfaithful disclosure corporation pursuant to the provisions of paragraph (1) may file an official written objection to the Exchange within seven (7) days from the date of receiving such notification.

(3) Provided that there are no special reasons, the Exchange shall determine if the concerned KOSDAQ-listed corporation falls under an unfaithful disclosure corporation, the number of demerit points, whether or not to charge the fine noted in [§34], and whether or not to request for replacement of the disclosure officer and disclosure staff noted in [§34-2], within three (3) days from the date of deliberation of the KOSDAQ Market Disclosure Committee (hereinafter referred to as “the Committee”) pursuant to the provisions of [§50], which was held within ten (10) days after the deadline for filing objection pursuant to paragraph (2). In such case, the Exchange shall determine the number of the demerit points and increase or reduction of demerit points, while taking into consideration the matters set forth in the Enforcement Rules such as the motivation and seriousness of the noncompliance, impact on investors and practice of faithful disclosure by the concerned corporation, etc. Provided that the designation of a KOSDAQ-listed corporation concerned as an unfaithful disclosure corporation may be

deferred for a period of six (6) months as stipulated in the Enforcement Rules, considering the faithfulness of the corporation in fulfilling the disclosure obligations in the past. (Amended on December 23, 2005; September 12, 2009; January 28, 2009; September 17, 2010; April 18, 2012; July 22, 2015; May 2, 2019)

(4) The Exchange may, when it is deemed necessary to determine whether or not the concerned KOSDAQ-listed corporation falls under the unfaithful disclosure and the number of demerit points, etc., request the concerned corporation to submit relevant documents proving such facts, and the corporation shall comply with the request without delay, provided that there are no special reasons. (Amended on September 12, 2008, January 28, 2009)

(5) In the case of designating a corporation as an unfaithful disclosure corporation or postponing the designation pursuant to paragraph (3), the Exchange shall post such fact, etc. on its disclosure media as specified in the Enforcement Rules, and notify the fact to the corporation concerned; and even in the case where the corporation concerned is not designated as the unfaithful disclosure corporation, the Exchange may take such measures as requesting for faithful fulfillment of the disclosure obligations, etc. (Amended on December 23, 2005; September 12, 2008; January 28, 2009; September 17, 2010; April 18, 2012; July 22, 2015)

(6) [Deleted on December 23, 2005]

(7) A KOSDAQ-listed corporation cannot file any official objection again to the decisions made pursuant to paragraph (3). (Amended on January 28, 2009)

(8) [Deleted on September 12, 2008]

(9) In cases where a KOSDAQ-listed corporation has failed to complete the training programs under [§36] and [§44(5)] or has infringed the obligations to concentrate the internal information pursuant to [§45(1)], the Exchange may post such facts on its disclosure media. (Amended on January 28, 2009)

(10) A KOSDAQ-listed corporation that submits an official objection pursuant to the provisions of paragraph (2) may attend the Committee meeting held pursuant to the provisions of paragraph (3) and present a statement on the circumstances of the concerned case. [December 23, 2005] (Amended on January 28, 2009)

(11) The matters necessary for submitting official objections pursuant to the provisions of paragraph (2) shall be stipulated in the Enforcement Rules.

(12) Notwithstanding paragraph (3), in cases where it is deemed that the deliberation of the Committee is not necessary as it falls under the requirements set forth in the Enforcement Rules, such as the contents of violation, it may not go through the deliberation of the Committee. [May 2, 2019]

### **§33. Request for Submission of Improvement Plan and Implementation Report to Unfaithful Disclosure Corporations, etc.**

(1) In cases where a KOSDAQ-listed corporation is designated as an unfaithful disclosure corporation under the provisions of [§32] and falls under the causes noted in [§56(1)12] of the KOSDAQ Market Listing Regulation, the Exchange may request the concerned corporation to submit an improvement plan for the prevention and avoidance of recurrence of unfaithful disclosure, and to submit a report on the implementation of the plan within ten (10) days after six (6) months from the date of submission of the improvement plan. (Amended on January 28, 2009; July 22, 2015; May 2, 2018; August 25, 2021, December 12, 2022; July 9, 2025)

1. [Deleted on July 22, 2015]

2. [Deleted on July 22, 2015]

(2) Any KOSDAQ-listed corporation that was requested for submission of an improvement plan and implementation report pursuant to the provisions of paragraph (1) shall submit the improvement plan and implementation report in the manner as stipulated in the Enforcement Rules; and in cases where it fails to implement the request (including the case of failing to implement the improvement plan), the Exchange may impose up to three (3) demerit points on the concerned KOSDAQ-listed corporation as stipulated in the Enforcement Rules. In such cases, when it is deemed necessary, the Exchange may request the corporation concerned for submission of corrected or supplemented improvement plan and implementation report. (Amended on January 28, 2009; July 22, 2015)

(3) The Exchange may publish the improvement plans and implementation reports submitted by KOSDAQ-listed corporations through its disclosure media for a period of six (6) months. (Amended on January 28, 2009; July 22, 2015)

[September 12, 2008]

### **§33-2 [Deleted on January 28, 2009].**

### **§34. Imposition of Fine for Noncompliance with Disclosure Obligations**

(1) When designating a KOSDAQ-listed corporation as an unfaithful disclosure corporation pursuant to [§32], the Exchange may impose a fine for noncompliance with disclosure obligations (hereinafter referred to as “the fine”) within the amount of KRW 500 million, in addition to the demerit points. (Amended on April 18, 2012; December 28, 2016)

(2) With respect to the imposition of the fine under paragraph (1), the Exchange shall separately establish the imposition guidelines, imposition amounts, whether to impose concurrently the demerit points and the fine or to choose either the demerit points or the fine, and other necessary matters.

(3) In cases where a KOSDAQ-listed corporation fails to pay the fine under paragraph (1) by

the payment deadline, the Exchange may take necessary actions such as imposition of additional demerit points or filing an application for payment order.

[January 28, 2009]

#### **§34-2. Request for Replacement of Disclosure Officer, etc. of Unfaithful Disclosure Corporations**

(1) The Exchange may, in the case of designating a KOSDAQ-listed corporation as an unfaithful disclosure corporation pursuant to [§32] and being specified in the Enforcement Rules in consideration of the contents and frequency of violations, request the concerned corporation to replace its disclosure officer and disclosure staff, and publicly announce the fact that such request has been made.

(2) In cases where a KOSDAQ-listed corporation fails to replace its disclosure officer and disclosure staff within the period specified in the Enforcement Rules from the date when the request for replacement was made pursuant to paragraph (1) and file a report of the change to the Exchange, the Exchange may impose up to four (4) demerit points on the concerned corporation as specified in the Enforcement Rules.

[July 22, 2015]

#### **§35. Checking Fulfillment of Disclosure Obligations, etc.**

(1) The Exchange may check whether KOSDAQ-listed corporations faithfully fulfill the disclosure obligations under this Regulation. (Amended on January 28, 2009)

(2) The monitoring pursuant to paragraph (1) shall be accomplished by such means as reviewing of the periodic reports such as annual reports and other reports submitted by KOSDAQ-listed corporations, requesting for other verifying documents, or making site visits, etc. (Amended on December 23, 2005; January 28, 2009)

(3) In relation to the validation of the disclosed details and the monitoring of the fulfillment of the disclosure obligations pursuant to paragraph (1), the Exchange may request the KOSDAQ-listed corporation to submit the materials proving the concerned facts, which the Exchange deems necessary, and the concerned corporation shall, provided that there is no special reasons, comply with the request without delay. (Amended on January 28, 2009)

(4) In cases where a KOSDAQ-listed corporation does not comply with the Exchange's request for submission of materials pursuant to paragraph (3), the Exchange may impose up to three (3) of demerit points on the corporation concerned as stipulated in the Enforcement Rules. [December 30, 2015]

(5) The Exchange may, in accordance with Article 392(2) of the Act and Article 361 of the Enforcement Decree of the Act, request the government agencies and other related organizations to provide with or exchange the information relevant to the details of disclosure

by the KOSDAQ-listed corporation. (Amended on January 28, 2009)

### **§36. Training Programs for Unfaithful Disclosure Corporations**

When a KOSDAQ-listed corporation has made unfaithful disclosure, the Exchange may organize training programs for the disclosure officer and disclosure staff of the concerned corporation to prevent unfaithful disclosures, and such disclosure officer and staff of the concerned corporation shall complete the training programs. (Amended on January 28, 2009)

## **CHAPTER V. ADMINISTRATION OF KOSDAQ-LISTED CORPORATIONS**

### **§37. Trading Suspension**

(1) In cases where a stock issued by a KOSDAQ-listed corporation falls under any of the following subparagraphs, the Exchange may suspend the trading of the concerned stock: (Amended on December 23, 2005; January 28, 2009; September 17, 2010; February 22, 2013)

1. Case where the stock price and trading volume suddenly change or are likely to suddenly change in relation to the rumors, etc.;
2. Case where it has made a disclosure on the matters that have significant influence on the stock price or trading volume and are specified in the Enforcement Rules;
3. Case where a KOSDAQ-listed corporation that was designated as unfaithful disclosure corporation pursuant to [§32(3)] is imposed demerit points equal to or greater than the scale specified in the Enforcement Rules;
4. [Deleted on February 22, 2013]
5. Case where it has failed to respond to the request for inquired disclosure under [§10] by the reporting deadline; and
6. In addition to subparagraphs 1 through 5, cases where the Exchange deems them necessary for the protection of investors.

(2) “The rumors, etc.” in paragraph (1)1 shall refer to the rumors or news about a KOSDAQ-listed corporation that falls under any of the following subparagraphs: (Amended on September 8, 2006; September 12, 2008; January 28, 2009; December 1, 2010; November 4, 2011; February 22, 2013, December 12, 2022)

1. Case where a bill or check issued by the corporation has been dishonored or its current account transactions with a bank have been suspended or banned;

2. Case where the whole or a part of its business has been suspended;
3. Case where an application for bankruptcy, dissolution or commencement of rehabilitation procedures pursuant to the relevant laws has been filed or the de facto liquidation procedure has commenced; and
4. Case where, according to the audit report on the annual report of the latest fiscal year, it falls under any of the following items:
  - (a) Case where CPA auditor's opinion is adverse opinion, disclaimer of opinion, or qualified opinion due to the restriction placed on the scope of audit;
  - (b) Case where over 50% of capital has been impaired (including impairment of entire capital) or the capital stock declined below KRW 1 billion; and
  - (c) Case where sales amount falls short of the amount stated in [§53(1)1] of the KOSDAQ Market Listing Regulation or loss from ongoing business before tax under [§53(1)2] is recorded.

5. Case of falling under violation of account standards;

6. In addition to subparagraphs 1 through 5, as a material matter in which a drastic change in stock prices and trading volume is expected, when it is possible to inquire about it.

(3) The matters necessary with respect to the suspension and resumption of trading under the provisions of paragraph (1) shall be specified in the Enforcement Rules.

(4) Provisions of paragraphs (1) through (3) shall apply *mutatis mutandis* to the case of subscription warrants or subscription right certificates issued by KOSDAQ-listed corporations. [October 21, 2009]

### **§38. Matters to Be Reported for Market Management**

(1) In cases where a matter noted in each of the following subparagraphs has occurred, KOSDAQ-listed corporations shall report the details of the matter to the Exchange without delay: (Amended on December 23, 2005; October 12, 2007; January 28, 2009; December 2, 2009; July 22, 2015; May 2, 2018; August 25, 2021; November 24, 2021; November 13, 2024)

1. Case where acquisition of the stocks for capital reduction has been completed or the period

for such acquisition has expired, and the retirement of such stocks has been completed;

2. Case where the period for closing of shareholders register or the record date therefor has been set or changed. Provided that the matters to be reported under the provisions of [§6(1)2(e)(v)] shall be excluded;

3. Case where the corporate name has been changed;

4. Case where the location of the head office has been changed;

5. Case where the accounting period has been changed;

6. Case where the issuing price has been determined in the event of paid-in capital increase, and where a decision on handling of forfeited shares resulted from low subscription has been made;

7. Case where the conversion price of convertible stocks (referring to different classes of stocks under Article 346 of the Commercial Act: the same shall apply hereinafter) and convertible bonds (CBs), exercise price of bonds with warrants (BW), and exchange price of exchangeable bonds (EBs) have been determined;

8. Case where the total accumulated number (excluding previously reported number of shares) of shares to be issued (in the case of underlying stocks, the number of stocks requested) by each of the conversion request of convertible stocks and CBs, the exercise of subscription rights of BWs, the request of exchange of EBs, and the request of exchange of DRs (including the cases where similar securities or certificates are issued overseas) for underlying stocks has reached to or exceeds 1/100 of the total number of shares issued.

9. Case where an adjustment (limited to the case where there is an adjustment due to market price fluctuations) of the conversion price of convertible stocks and CBs, exercise price of BWs or exchange price of EBs has been made;

10. Case where, after issuing CBs, acquisition of warrants separated from the relevant bonds was made;

11. Case where the total accumulated number of shares for which stock options were exercised (excluding previously reported number of shares exercised) reached to or exceeds 1/100 of the total number of shares issued;

12. Case of entering into, terminating or amending the agreement for liquidity provision under the provisions of [§12-3(2)] of the KOSDAQ Market Business Regulation (hereinafter referred to as “the Business Regulation”); and

13. In the event that the largest shareholder of a KOSDAQ-listed corporation is a person under [§51(1)] of the KOSDAQ Market Listing Regulation, when it was confirmed that the largest shareholder (if not a company, the largest investor) of the concerned person has been changed. In such cases, a report shall be filed as stipulated in the Enforcement Rules.

(2) In cases where a KOSDAQ-listed corporation fails to report the matters concerning subparagraph 13 of paragraph (1) by the day following the date of occurrence of the cause, the Exchange may impose the concerned corporation of the demerit points within three (3) points as stipulated in the Enforcement Rules. [May 2, 2018]

### **§39. Disclosure by the Exchange**

(1) [Deleted on January 28, 2009]

(2) The Exchange may disclose any of the following matters on behalf of the relevant KOSDAQ-listed corporation: (Amended on December 23, 2005; January 28, 2009)

1. [Deleted on January 28, 2009]

2. The corporate information of a KOSDAQ-listed cooperation that the Exchange has confirmed with the related institutions pursuant to the provisions of Article 361 of the Enforcement Decree of the Act, the contents of which are deemed necessary to be promptly disclosed because they might have a considerable influence on the investment decisions of investors;

3. [Deleted on December 23, 2005]

4. The information relating to the filing of lawsuits and an application for permission of lawsuits under Article 7 of the Securities-related Class Action Act, the matters relating to the court ruling on the permission of lawsuits under Article 19 of the same Act, and any other matters that the court has notified to the Exchange pursuant to other related statutes.

5. The matters that the Exchange has been notified by a bank pursuant to Article 392(1) of the Act.

### **§40. Information regarding Markets and Market Operation**

(1) The Exchange shall disclose the information about any of the following matters without delay: (Amended on January 28, 2009; March 2, 2011; February 22, 2013; August 25, 2021)

1. Assignment of company categories and change thereof pursuant to [§47] of the KOSDAQ Market Listing Regulation;

2. Matters related to initial listing, supplementary listing, listing change and de-listing; designation as an administrative issue and release from such designation; designation as an investment attention issue and release thereafter pursuant to [§52] of the KOSDAQ Market Listing Regulation, designation as a trading suspension issue and release thereafter pursuant to [§37(1)], [§18(1)] of the KOSDAQ Market Listing Regulation and [§25(1)] of the KOSDAQ Market Business Regulation;

3. Matters related to designation of corporations exempted from verification procedure under [§5(4)];
4. Details of a request for inquired disclosure and the disclosure deadlines;
5. Facts about a request for correction under [§30-2] and the deadlines for correction;
6. In addition to subparagraphs 1 through 5, the matters that are deemed necessary.

(2) The matters necessary for disclosure under the provisions of paragraph (1) shall be stipulated in the Enforcement Rules.

#### **§41. Withholding of Disclosures by the Exchange**

When the contents of a disclosure made by a KOSDAQ-listed corporation fall under any of the followings, the Exchange may withhold such disclosure for a specified period of time until the relevant cause is resolved. (Amended on December 23, 2005; September 12, 2008; January 28, 2009)

1. Case where the details disclosed fall under the confidential information under the relevant statutes such as the Military Secret Protection Act;
2. Case where it is confirmed that the details disclosed are in violation of the related statutes;
3. Case where it is judged that the sources of details disclosed could not be verified or such details may confuse the investors in making their investment decisions;
4. Case where the details re-disclosed pursuant to [§11(2)] are deemed to be similar to those already disclosed; and
5. Cases, other than those specified in subparagraphs 1 through 4, where it is deemed that the sound trading practices in the KOSDAQ Market is likely to be undermined.

#### **§42. Withholding of Disclosures upon Request**

(1) In cases where it is necessary to keep the business confidentiality, a KOSDAQ-listed corporation may request the Exchange to withhold the disclosure of the matters specified in the Enforcement Rules, from among the matters to be reported in each of the followings. In such cases, a consultation with the Exchange shall be made in advance: (Amended on July 22, 2015; December 30, 2015; May 2, 2018)

1. Matters noted in [§6(1)1(c)];
2. Matters noted in [§6(1)2(b)(iv)];
3. Matters noted in [§6(1)4]; and
4. Matters falling under subparagraphs 1 through 3 of this Paragraph, from among the matters to be disclosed under [§7(1)].

(2) With regard to the request to withhold the disclosure noted in paragraph (1), if withholding of the disclosure is deemed necessary after having considered the balance between the need to keep the business confidentiality and the investor protection, the Exchange may approve the request.

(3) Each KOSDAQ-listed corporation shall keep the confidentiality for the matters for which the disclosure was withheld pursuant to paragraphs (1) and (2), and when the withholding period ends or the conditions for withholding are lifted, the disclosure that has been withheld shall be made by the next day. Provided that, in cases where it is deemed necessary to keep the business confidentiality with respect to the matters specified in the Enforcement Rules, from among the matters for which the disclosure was withheld, the reporting may be made as stipulated in the Enforcement Rules. (Amended on May 2, 2018)

[January 28, 2009]

#### **§43. Reporting of Materials distributed at Investor Relations Sessions**

(1) When a KOSDAQ-listed corporation holds a briefing session on its management, business plans and prospects, etc. (hereinafter referred to as the “investor relations session”), in addition to the matters to be disclosed under [§6], it shall make the investor relations session open to an unspecified number of people, and the contents of the materials provided in conjunction with the investor relations session shall maintain fairness and objectivity. (Amended on December 23, 2005; January 28, 2009)

(2) The Exchange, KOSDAQ-listed Companies Association (hereinafter referred to as “the Association” and Korea IR Services may advise, guide, sponsor and supervise the organization of investor relations sessions for KOSDAQ-listed corporations, while taking into consideration the financial status and business size of the corporations. (Amended on December 23, 2005; January 28, 2009; September 17, 2010; December 28, 2016)

(3) A KOSDAQ-listed corporation shall, when organizing an investor relations session under the provisions of paragraph (1), notify the Exchange in writing or via facsimile of the time, place, and details of the session and the Exchange shall disclose such information. (Amended on December 23, 2005; January 28, 2009)

(4) In cases where the information distributed at an investor relations session includes the information subject to fair disclosure, KOSDAQ-listed corporations shall report such information to the Exchange as stipulated in [§12] through [§14]. In such cases, it shall be deemed that the notification pursuant to paragraph (3) has been made. [December 23, 2005] (Amended on January 28, 2009)

(5) [Deleted on April 29, 2015]

#### **§44. Reporting, etc. of Disclosure Officers, Etc.**

(1) The disclosure under this Regulation shall be made by the disclosure officer of the relevant

KOSDAQ-listed corporation. (Amended on January 28, 2009)

(2) Each KOSDAQ-listed corporation shall appoint one (1) disclosure officer and one (1) disclosure staff and report it to the Exchange, together with the documents set forth in the Enforcement Rules. The same shall apply when the disclosure officer and the disclosure staff are changed. (Amended on January 28, 2009)

(3) [Deleted on December 23, 2005]

(4) [Deleted on February 22, 2013]

(5) The disclosure officer and disclosure staff under the provisions of paragraph (2) shall complete the training programs on disclosure duties as stipulated in the Enforcement Rules.

(6) Any person who has been reported for the suspicion of embezzlement or misappropriation pursuant to [§6(1)2d(vi)] within the most recent three (3) years or who has received the punishment heavier than a fine for the involvement in the embezzlement or misappropriation within the most recent three (3) years shall not be reported as the disclosure officer. [September 12, 2008]

(7) [Deleted on May 2, 2019]

(8) In cases where the disclosure officer and disclosure staff of a KOSDAQ-listed corporation fail to complete the training programs specified in the Enforcement Rules within the past two (2) years counting from the end of each year, the Exchange may require the corporation concerned to replace its disclosure officer and staff as stipulated in the Enforcement Rules, and if the corporation concerned fails to comply with this requirement, the Exchange may impose up to three (3) demerit points as stipulated in the Enforcement Rules. [July 22, 2015]

#### **§44-2. Designation of Disclosure Agents**

(1) Notwithstanding [§44(1)], a KOSDAQ-listed corporation that falls under any of the following subparagraphs may designate a person who meets the qualification requirements set forth in the Enforcement Rules, including having professional knowledge in corporate disclosure, thus being capable of acting on behalf of the concerned listed foreign corporation for all of the matters to be reported and the matters to be disclosed by the corporation (hereinafter referred to as “disclosure agent”) and conduct the disclosure pursuant to this Regulation:

1. A KOSDAQ-listed corporation for which three years have not elapsed since the date of its initial listing; and

2. A KOSDAQ-listed corporation that falls under the small and medium enterprise prescribed in Article 2 of the Framework Act on Small and Medium Enterprises.

(2) When a foreign corporation reports the appointment of disclosure agent (including the

reporting of the change of disclosure agent) to the Exchange, the report shall be attached with a document proving that the disclosure agent is authorized to act on behalf of the concerned listed foreign corporation.

(3) In cases where it is confirmed that the disclosure agent has failed to meet the qualification requirements specified in the Enforcement Rules, the Exchange may require the relevant corporation to replace its disclosure agent.

(4) With respect to the disclosure agents, [§34-2], [§36] and [§44(5) & (8)] shall apply *mutatis mutandis*.

(5) The matters that are necessary concerning the designation and reporting, etc. pursuant to the provisions of paragraphs (1) through (4) shall be stipulated in the Enforcement Rules.

[May 2, 2019]

#### **§45. Management of Internal Information**

(1) A KOSDAQ-listed corporation shall, when in addition to the matters to be disclosed under this Part, an event that may have a significant influence on the company management or properties, or the investors' decisions (hereinafter referred to as "internal information") took place, have such internal information concentrated to the disclosure officer under the provisions of [§2(4)] for the overall control and proper disclosure of such information. (Amended on January 28, 2009)

(2) KOSDAQ-listed corporations shall establish regulations for the management of internal information by referring to the "Regulation on the standard management of internal information of KOSDAQ-listed corporations" formulated by the Association and make the regulations public through such media as company websites. (Amended on January 28, 2009; September 17, 2010)

#### **§46. Disclosure in English**

KOSDAQ-listed corporations may make a disclosure in English within five (5) trading days (three months in cases specified in the Enforcement Rules) after making the disclosure in Korean. (Amended on January 28, 2009; July 22, 2015; November 13, 2024)

#### **§47. Detailed Matters on Disclosure**

The Exchange may separately determine the details of matters necessary for the disclosure pursuant to this PART. (Amended on December 23, 2005; January 28, 2009; February 22, 2013)

**§48. [Deleted on February 22, 2013]**

**§49. Awarding KOSDAQ-Listed Corporations, etc.**

(1) The Exchange may award or commend the officers and employees of KOSDAQ-listed corporations and their officers and employees, including the outside directors, who have made efforts to enhance the transparency of corporate governance and create a climate of faithful disclosure. (Amended on January 28, 2009)

(2) The Exchange may award the person who reports on or informs of violations of disclosure obligations stipulated in PART I to the Exchange in order to encourage the KOSDAQ-listed corporations to faithfully fulfill the disclosure obligations. [June 15, 2011]

(3) The Exchange shall separately stipulate the matters necessary in relation to paragraphs (1) and (2). (Amended on June 15, 2011)

(Wholly amended on December 23, 2005)

**§50. KOSDAQ Market Disclosure Committee**

(1) In order to protect the public interest and investors and ensure the fair operation of KOSDAQ Market, the Exchange may establish and operate the KOSDAQ Market Disclosure Committee for the deliberation on such matters as the improvement of disclosure system and operation thereof, whether to designate as unfaithful disclosure corporations, determination of demerit points, whether to impose the fine, and whether to request for replacement of the disclosure officer and disclosure staff pursuant to [§34(2)]. (Amended on December 23, 2005; September 12, 2008; January 28, 2009; July 22, 2015)

(2) In conducting the deliberations pursuant to paragraph (1), the KOSDAQ Market Disclosure Committee may increase or reduce the demerit points, while taking into consideration the matters specified in [§32(3)]. [December 23, 2005] (Amended on September 12, 2008; January 28, 2009)

(3) The Exchange shall separately stipulate the matters necessary for the composition and operation of the Committee mentioned in paragraph (1).

**PART II. BUSINESS DEVELOPMENT COLLECTIVE INVESTMENT VEHICLE**  
[March 4, 2026]

## **CHAPTER I. GENERAL PROVISIONS**

### **§50-2 Purpose**

The purpose of this Part is to stipulate the matters necessary for reporting, disclosing and managing the corporate information, etc. of corporations listed on collective investment securities of a business development collective investment vehicle pursuant to Articles 229-2 and 391 of the Act.

[March 4, 2026]

### **§50-3. Definitions**

(1) The definitions of terms used in this Part shall be as follows:

1. The term “business development collective investment business entity” refers to the business development collective investment business entity under Article 9, Paragraph 31 of the Act;
2. The term “business development collective investment vehicle” refers to the business development collective investment vehicle under Article 229, Subparagraph 6 of the Act;
3. The term “business development collective investment securities” refers to the securities issued by a business development collective investment vehicle;
4. The term “business development investment trust” refers to the business development collective investment vehicle established as an investment trust;
5. The term “business development investment company” refers to the business development collective investment vehicle established as an investment company;
6. The term “listed company that issued business development investment trust beneficiary certificates” refers to the business development collective investment business entity that issued beneficiary certificates listed on the KOSDAQ Market;
7. The term “listed company that issued business development investment company stocks” refers to the business development investment company that issued stocks listed on the KOSDAQ Market;
8. The term “listed company that issued business development collective investment securities” refers to the business development collective investment business entity and business development investment company that issued business development collective investment securities listed on the KOSDAQ Market;
9. The term “primary investment target company” refers to the primary investment target company under Article 81, Paragraph 4, Subparagraph 1 of the Act;

10. The term “disclosure officer” refers to a corporate director in the case of a listed company that issued business development investment company stocks, and in the case of a listed company that issued business development investment trust beneficiary certificates, to a person designated as a disclosure officer among the employees of the business development collective investment business entity; and

11. The term “unfaithful disclosure” refers to a case where a listed company that issued business development collective investment securities falls under any of the cases of non-compliance with disclosure obligations, reversal or disclosure or change of disclosure, by failing to faithfully fulfill the reporting obligations under the provisions of this Part or reversing or changing the details of the matters already reported.

(2) In addition, the definitions of terms used in the Part shall be in accordance with the Act, the Enforcement Decree of the Act, the Enforcement Rules of the Act, and other relevant statutes, and the rules and regulations established by the Exchange.

[March 4, 2026]

#### **§50-4. Applicable Standard**

(1) In this Part, “total assets” shall be applied based on the total assets at end of the immediately preceding quarter. Provided that, in cases of initial listings listing after merger, or relisting after a spin-off merger after the end of the immediately preceding quarter, it shall be applied based on the total assets at the time of listing for each respective reason.

(2) In this Part, “valuation amount” shall be applied based on the valuation results pursuant to Article 229-2, Paragraph 3 of the Act and Article 241-3, Paragraph 7 of the Enforcement Decree of the Act.

[March 4, 2026]

#### **§50-5. Faithful Fulfillment of Disclosure Obligations, etc.**

(1) A listed company that issued business development collective investment securities shall faithfully report matters subject to disclosure obligation under this Part.

(2) A listed company that issued business development collective investment securities shall ensure that the details of corporate information are not leaked or disseminated in the securities market in the form of rumors or news, etc. before such information is publicly disclosed pursuant to paragraph (1).

[March 4, 2026]

#### **§50-6. Methods for Reporting and Document Submission**

(1) The matters to be disclosed and reported to the Exchange by a listed company that issued business development collective investment securities pursuant to the provisions of this shall

be prepared and submitted electronically as prescribe in Article 436 of the Act, and in the case of electronic submission, the submission in writing (including submission via facsimile) may be waived. In this case, Part III of these regulations shall be applied.

(2) Notwithstanding the provisions of paragraph (1), when the Exchange deems it inevitable, a listed company that issued business development collective investment securities may report by filing of written submission (including submission via facsimile).

[March 4, 2026]

## **CHAPTER II. DISCLOSURE OBLIGATIONS of LISTED COMPANY THAT ISSUED BUSINESS DEVELOPMENT COLLECTIVE INVESTMENT SECURITIES**

### **Section I. Disclosure Obligations of Listed Company that Issued Business Development Investment Trust Beneficiary Certificates**

#### **§50-7. Matters to Be Disclosed**

When falling under any of the followings, a listed company that issued business development investment trust beneficiary certificates report the facts or the details of a decision to the Exchange by the deadline specified in each of the following subparagraphs. In such cases, if a report is made in accordance with the Enforcement Rules due to unavoidable circumstances, it shall be deemed to have been made within the deadline.

1. In any of the following facts occur regarding assets (excluding assets under Article 81, Paragraph 5, Subparagraph 4 of the Act) in which a business development investment trust has invested, the listed company that issued business development investment trust beneficiary certificates shall report the details thereof to the Exchange by the day following the day on which the event occurred;

(a) Case where, in relation to Article 241-3, Paragraph 9, Subparagraph 1 of the Enforcement Decree of the Act, assets (including investments made through associations, etc.; the same hereinafter in this subparagraph) exceeding 5% of the total assets are acquired or disposed of during the relevant quarter;

(b) Case where the valuation amount of assets exceeding 5% of the total assets [excluding assets under Article 9, Paragraph 15, Subparagraph 3, Item(a) of the Act (hereinafter referred to as “listed stocks”)] changes in excess of 50% or more compared to the previous valuation date (provided that, if the asset was acquired after the previous valuation date, the case where the valuation amount changes in excess of 50% or more compared to the valuation amount at the time of acquisition);

(c) Case where listed stocks acquired (including investments made through associations, etc.) in excess of 5% of total assets are additionally acquired or partially or wholly disposed of during the relevant quarter in excess of 20% of the existing holdings;

(d) Case where stocks, etc. of an unlisted company acquired (including securities under Article 139 of the enforcement Decree of the Act invested through associations, etc.) in excess of 5% of total assets are additionally acquired or partially or wholly disposed of during the relevant quarter in excess of 10% of the existing holdings;

(e) Case where assets acquired (excluding assets under subparagraphs (c) and (d)) in excess of 5% of total assets are additionally acquired or partially or wholly disposed of during the relevant quarter in excess of 50% of the valuation amount as of the immediately preceding valuation date (provided that, if the asset was acquired after the immediately preceding valuation date, the case where it is additionally acquired or partially or wholly disposed of during the relevant quarter in excess of 50% of the valuation amount at the time of acquisition);

2. In relation to Article 241-3, Paragraph 9, Subparagraph 2 of the Enforcement Decree of the Act, if any of the following facts are confirmed regarding a primary investment target company (including cases where investment was made through association, etc.) in which a business development investment trust has invested in excess of 5% of its total assets, the relevant listed company that issued business development investment trust beneficiary certificates shall report the details thereof to the Exchange by the day following the day on which the fact was confirmed;

(a) Case where a bill or check issued by the corporation is dishonored or its current account transactions with a bank are suspended or banned;

(b) Case where an application for the commencement of rehabilitation procedures or simplified rehabilitation procedures is filed pursuant to the Debtor Rehabilitation and Bankruptcy Act;

(c) Case where all of the business is suspended;

(d) Case where a reason for dissolution under Article 517 of the Commercial Act or other Acts has occurred;

(e) Case where a listed corporation under Article 81-2, Paragraph (3), Subparagraph 2, Item (A) falls under any of the followings:

(i) When it is delisted (excluding cases of delisting by application); or

(ii) When it files a delisting application for the listing on the KOSPI or KOSDAQ market pursuant to [§28(1)11] of the KONEX Market Listing Regulations.

(f) Case where a listed corporation under Article 81-2, Paragraph (3), Subparagraph 2, Item (B) falls under any of the followings:

(i) When it is delisted (excluding cases of delisting by application); or

(ii) When it files a delisting application for the listing transfer pursuant to [§54(9)] of the KOSDAQ Market Listing Regulations.

(g) Case where the matters under Article 161, Paragraph 1, Subparagraph 6 of the Act occur;

(h) Case where an application for initial listing under [§12] of the KONEX Market Listing Regulations;

(i) Case where an application for preliminary listing review under [§5] of the KOSDAQ Market Listing Regulations; and

(j) Case where an application for preliminary listing review under [§21] of the KOSPI Market Listing Regulations.

3. In the case where any of the following facts regarding the existence and structure of a business development investment trust occurs, the relevant business development investment trust shall report the details thereof to the Exchange by the day following the day on which the fact occurs:

(a) Case where a change registration is made pursuant to Article 182, Paragraph 8 of the Act;

(b) Case where there is a change to the trust agreement pursuant to Article 182, Paragraph 2 of the Act;

(c) Case where a merger is carried out pursuant to Article 193 of the Act;

(d) Case where the trust agreement is terminated pursuant to Article 192 of the Act; or

(e) Case where a disposition of registration cancellation by the Financial Services Commission pursuant to Article 253 of the Act.

4. In the case where any of the following facts regarding the relevant listed company that issued business development investment trust beneficiary certificates occurs, the details thereof shall be reported to the Exchange by the day following the day on which the fact occurs:

(a) Case where a disposition of revocation of authorization for the operation of the business development collective investment scheme is received from the Financial Services Commission pursuant to Article 420 of the Act;

(b) Case where a disposition of total suspension of business is received from the Financial Services Commission pursuant to Article 420 of the Act;

(c) Case where an order for total suspension of business under Article 57 of the Specialized Credit Finance Business Act is received from the Financial Services Commission; or

(d) Case where an order for total suspension of business under Article 49 of the Act on Promotion of Venture Investment is received from the Minister of SMEs and Startups.

5. In the case where any of the following facts regarding the relevant business development investment trust occurs, the details thereof shall be reported to the Exchange by the day following the day on which the fact occurs:

- (a) The result of the general meeting of beneficiaries;
- (b) Case where a decision regarding the distribution of profits is made pursuant to Article 242 of the Act;
- (c) Case where the principal amount of the trust is less than KRW 5 billion as of the last day of the latest accounting period; or
- (d) Case where an audit report is received from the auditor pursuant to Article 240 of the Act.

6. In addition to subparagraphs 1 through 5, cases where there is a fact or decision prescribed by the Enforcement Rules that has or may have a significant impact on the stock price of the listed company that issued business development investment trust beneficiary certificates or on the investor's investment judgment.

[March 4, 2026]

#### **§50-8. Submission of Regular Reports, etc.**

A listed company that issued business development investment trust beneficiary certificates shall submit to the Exchange the asset management report under Article 88 of the Act, the business report under Article 90 of the Act, and the financial statements under Article 239 of the Act by the statutory deadlines for submission.

[March 4, 2026]

#### **§50-9. Inquired Disclosure**

(1) In order to verify the facts regarding rumors or news reports, etc., which are material matters among those specified in [§50-7] and [§50-8], the Exchange shall request the relevant listed company that issued business development investment trust beneficiary certificates to make an inquired disclosure and shall make public the fact about such request for inquired disclosure and the details thereof through its disclosure media.

(2) The relevant company that has received a request for verification of facts pursuant to paragraph (1) shall submit to the Exchange the contents of the disclosure by the methods under [§50-6] by the day following the date of the request.

(3) Notwithstanding the provisions of paragraph (1), when the content of the rumors or news reports is a matter that was disclosed by the concerned company within the last one (1) month, the Exchange may not make the request for inquired disclosure.

(4) Matters subject to the inquired disclosure pursuant to paragraph (1), the scope of rumors or news reports, and other matters related to inquired disclosure shall be prescribed by the Enforcement Rules.

[March 4, 2026]

## **Section II. Disclosure Obligations of Listed Company that issued Business Development Investment Company Stocks**

[March 4, 2026]

### **§50-10. Matters to Be Reported and Disclosed**

When falling under any of the following subparagraphs, a listed company that issued business development investment company stocks shall report the details of the facts or decisions to the Exchange by the deadlines specified in each of the following subparagraphs. In such cases, if a report is made in accordance with the Enforcement Rules due to unavoidable circumstances, it shall be deemed to have been made within the deadline:

1. If any of the facts in the followings occurs regarding assets (excluding assets under Article 81, Paragraph 5, Subparagraph 4 of the Act) in which a listed company that issued business development investment company stocks, the relevant listed company that issued business development investment company shall report the details thereof to the Exchange by the day following the day on which the event occurred:

(a) Case where, in relation to Article 241-3, Paragraph 9, Subparagraph 1 of the Enforcement Decree of the Act, an asset (including investments made through association, etc.; the same hereinafter in this subparagraph) exceeding 5% of the total assets are acquired or disposed of during the relevant quarter;

(b) Case where the valuation amount of an asset (excluding listed stocks) exceeding 5% of the total assets changes by 50% or more compared to the previous valuation date (provided that, in cases where the asset was acquired after the previous valuation date, a case where it changes by 50% or more compared to the valuation amount at the time of acquisition);

(c) Case where listed stocks (including investment made through association, etc.) acquired in excess of 5% of the total assets are additionally acquired by an amount exceeding 20% of the existing holdings or partially or wholly disposed of during the relevant quarter;

(d) Case where stocks, etc. (including investment made through association, etc. for securities under Article 139 of the Enforcement Decree of the Act) of a non-listed company acquired in excess of 5% of the total assets are acquired by an amount exceeding 10% of the existing holdings or partially or wholly disposed of during the relevant quarter;

(d) Case where an asset [excluding assets under items (c) and (d)] acquired in excess

of 5% of the total assets are additionally acquired exceeding 50% of the valuation amount as of the immediately preceding valuation date or partially or wholly disposed of during the relevant quarter (provided that, in cases where the asset was acquired after the immediately preceding valuation date, a case where it is additionally acquired in excess of 50% of the valuation amount at the time of acquisition or partially or wholly disposed of during relevant quarter).

2. In relation to Article 241-3, Paragraph 9, Subparagraph 2 of the Enforcement Decree of the Act, if it is confirmed that a primary investment target company (including investment was made through associations, etc.) in which a listed company that issued business development investment company stocks has invested more than 5% of the total assets falls under any of the followings, the relevant listed company that issued business development investment company shall report such facts to the Exchange by the day following the day of confirmation:

(a) Case where a bill or check issued by the corporation is dishonored or its current account transactions with a bank are suspended or banned;

(b) Case where an application for the commencement of rehabilitation procedures or simplified rehabilitation procedures is filed pursuant to the Debtor Rehabilitation and Bankruptcy Act;

(c) Case where all of the business is suspended;

(d) Case where a reason for dissolution under Article 517 of the Commercial Act or other Acts has occurred;

(e) Case where a listed corporation under Article 81-2, Paragraph (3), Subparagraph 2, Item (A) falls under any of the followings:

(i) When it is delisted (excluding cases of delisting by application); or

(ii) When it files a delisting application for the listing on the KOSPI or KOSDAQ market pursuant to [§28(1)11] of the KONEX Market Listing Regulations.

(f) Case where a listed corporation under Article 81-2, Paragraph (3), Subparagraph 2, Item (B) falls under any of the followings:

(i) When it is delisted (excluding cases of delisting by application); or

(ii) When it files a delisting application for the listing transfer pursuant to [§54(9)] of the KOSDAQ Market Listing Regulations.

(g) Case where the matters under Article 161, Paragraph 1, Subparagraph 6 of the Act occur:

(h) Case where an application for initial listing under [§12] of the KONEX Market Listing Regulations;

(i) Case where an application for preliminary listing review under [§5] of the KOSDAQ Market Listing Regulations; and

(j) Case where an application for preliminary listing review under [§21] of the KOSPI Market Listing Regulations.

3. In the case where any of the following facts regarding the existence and structure of a listed company that issued business development investment company stocks occurs, the relevant business development investment company shall report the details thereof to the Exchange by the day following the day on which the fact occurs:

(a) Case where a change registration is made pursuant to Article 182, Paragraph 8 of the Act;

(b) Case where a merger is carried out pursuant to Article 204 of the Act;

(c) Case where a cause for dissolution pursuant to Article 202 of the Act; or

(d) Case where a disposition of registration cancellation by the Financial Services Commission pursuant to Article 253 of the Act.

4. In the case where any of the following facts regarding a business development collective investment business entity which established a business development investment company occurs, the relevant business development investment company shall report the details thereof to the Exchange by the day following the day on which the fact occurs:

(a) Case where a disposition of revocation of authorization for the operation of the business development collective investment scheme is received from the Financial Services Commission pursuant to Article 420 of the Act;

(b) Case where a disposition of total suspension of business is received from the Financial Services Commission pursuant to Article 420 of the Act;

(c) Case where an order for total suspension of business under Article 57 of the Specialized Credit Finance Business Act is received from the Financial Services Commission; or

(d) Case where an order for total suspension of business under Article 49 of the Act on Promotion of Venture Investment is received from the Minister of SMEs and Startups.

5. In the case where any of the following facts regarding business activities of a listed company that issued business development investment company stocks occurs, the relevant business development investment company shall report the details thereof to the Exchange by the day following the day on which the fact occurs. Provided that, in cases falling under (d), a report shall be made by the day following the day on which the relevant fact was confirmed:

(a) The result of the general meeting of beneficiaries;

(b) Case where a decision regarding the distribution of profits is made pursuant to Article 242 of the Act;

(c) Case where a decision regarding an increase or decrease of paid-in capital;

(d) Case where proceedings such as litigation as prescribed in the Enforcement Rules are filed or applied for against the relevant listed company that issued business development investment company stocks;

(e) Case where equity capital is less than KRW 5 billion as of the last day of the latest accounting period; or

(f) Case where an audit report is received from the auditor pursuant to Article 240 of the Act.

6. In addition to subparagraphs 1 through 5, cases where there is a fact or decision prescribed by the Enforcement Rules that has or may have a significant impact on the stock price of the relevant listed company that issued business development investment company stocks or on the investor's investment judgment.

[March 4, 2026]

#### **§50-11. Submission of Regular Reports, etc.**

A listed company that issued business development investment company stocks shall submit to the Exchange the asset management report under Article 88 of the Act, the business report under Article 90 of the Act, and the financial statements under Article 239 of the Act by the statutory deadlines for submission.

[March 4, 2026]

#### **§50-12. In quired Disclosure**

(1) In order to verify the facts regarding rumors or news reports, etc., which are material matters among those specified in [§50-10] and [§50-11], the Exchange shall request the relevant listed company that issued business development investment company stocks to make an inquired disclosure and shall make public the fact about such request for inquired disclosure and the details thereof through its disclosure media.

(2) The relevant company that has received a request for verification of facts pursuant to paragraph (1) shall submit to the Exchange the contents of the disclosure by the methods under [§50-6] by the day following the date of the request.

(3) Notwithstanding the provisions of paragraph (1), when the content of the rumors or news reports is a matter that was disclosed by the concerned company within the last one (1) month, the Exchange may not make the request for inquired disclosure.

(4) Matters subject to the inquired disclosure pursuant to paragraph (1), the scope of rumors or

news reports, and other matters related to inquired disclosure shall be prescribed by the Enforcement Rules.

[March 4, 2026]

## **CHAPTER III. UNFAITHFUL DISCLOSURE**

### **§50-13. Types of Unfaithful Disclosure**

In the case where a listed company that issued business development collective investment securities falls under any of the following subparagraphs, the Exchange shall deem it an unfaithful disclosure:

1. Non-fulfillment of disclosure obligations: Case of falling under any of the followings:
  - (a) Case of failing to make disclosure of the matters to be disclosed pursuant to [§50-7] through [§50-12] and [§50-22] by the relevant reporting deadlines; or
  - (b) Case of making false or incorrect disclosure of the matters to be disclosed pursuant to [§50-7] through [§50-12] and [§50-22], or making a disclosure without stating material matters.
2. Reversals of Disclosures: Case of making a disclosure that completely cancels or denies the details already disclosed pursuant to [§50-7] through [§50-12] or other disclosure with a content equivalent thereto; or
3. Making changes to existing disclosure: Cases where material matters of content already disclosed pursuant to [§50-7] and [§50-10] are changed and the details prescribed in the Enforcement Rules are disclosed.

[March 4, 2026]

### **§50-14. Request for Submission of Materials**

If the Exchange deems it necessary to determine whether there is a violation of disclosure obligations, it may request the submission of documents, etc. proving the relevant facts, and a listed company that issued business development collective investment securities shall comply without delay unless there are special circumstances.

[March 4, 2026]

### **§50-15. Exceptions in Applying Provisions on Unfaithful Disclosure**

(1) Notwithstanding the provisions of [§50-13], the Exchange shall not regard it as an unfaithful disclosure if it falls under any of the followings: (Amended on January 28, 2009)

1. When it is unavoidable under other statutes, regulations, etc.;
2. When a natural disaster, sudden and significant change in the economic situations or other incidents equivalent thereto have occurred;
3. Case where it is deemed necessary for the public interests and protection of investors; and
4. In addition, cases where the concerned KOSDAQ-listed corporation proves that it is not culpable for the cause, or the Exchange deems it to be a minor matter that has no or little influence on the stock price.

(2) In applying the provisions of paragraph (1), the Exchange may request the relevant corporation to submit the materials related to the disclosed details.

[March 4, 2026]

#### **§50-16. Measures against Unfaithful Disclosure**

(1) In cases where a listed company that issued business development collective investment securities makes an unfaithful disclosures under [§50-13], the Exchange shall announce this through its disclosure media.

(2) In cases where the Exchange announces the fact of unfaithful disclosure by a listed company that issued business development collective investment securities pursuant to paragraph (1), it shall publish the fact and circumstances of the unfaithful disclosure in the Daily Market Review for five (5) days from the date of the unfaithful disclosure and in electronic disclosure media for one (1) month, respectively.

(3) If the Exchange recognizes an exception to the application of unfaithful disclosure under [§50-15] and does not publish the details of the unfaithful disclosure in disclosure media, it may take measures to urge caution against the listed company that issued business development collective investment securities.

(4) Matters necessary for the publication of contents regarding an unfaithful disclosure, calls for caution, etc. shall be prescribed by the Enforcement Rules.

[March 4, 2026]

#### **§50-17. Checking Fulfillment of Disclosure Obligations, etc.**

(1) The Exchange may check whether a listed company that issued business development collective investment securities faithfully fulfill the disclosure obligations under this Regulation.

(2) The monitoring pursuant to paragraph (1) shall be accomplished by such means as reviewing of the periodic reports such as annual reports and other reports submitted by a listed company that issued business development collective investment securities, requesting for other verifying documents, or making site visits, etc.

(3) In relation to the validation of the disclosed details and the monitoring of the fulfillment of the disclosure obligations pursuant to paragraph (1), the Exchange may request the listed company that issued business development collective investment securities to submit the materials proving the concerned facts, which the Exchange deems necessary, and the concerned corporation shall, provided that there are no special reasons, comply with the request without delay.

(4) The Exchange may, in accordance with Article 392(2) of the Act and Article 361 of the Enforcement Decree of the Act, request the government agencies and other related organizations to provide with or exchange the information relevant to the details of disclosure by the listed company that issued business development collective investment securities.

[March 4, 2026]

## **CHAPTER IV. ADMINISTRATION OF LISTED COMPANY THAT ISSUED BUSINESS DEVELOPMENT COLLECTIVE INVESTMENT SECURITIES**

### **§50-18. Trading Suspension**

(1) In cases where business development collective investment securities listed on the KOSDAQ market falls under any of the following subparagraphs, the Exchange may suspend the trading of the concerned issue:

1. Case where it has failed to respond to the request for inquired disclosure under [§50-9] and [§50-12] by the reporting deadline; and
2. In addition, cases where the Exchange deems them necessary for the protection of investors.

(2) The matters necessary with respect to the suspension and resumption of trading under the provisions of paragraph (1) shall be specified in the Enforcement Rules.

[March 4, 2026]

### **§50-19. Matters to Be Reported for Market Management**

(1) In cases where a matter noted in each of the following subparagraphs has occurred, a listed company that issued business development investment trust beneficiary certificates shall report

the details of the matter to the Exchange without delay:

1. Closing of the ledger for beneficiary certificates or setting record date for the closure;
2. Change of the head office location of a business development collective investment business entity;
3. Change of a general fund administrator; or
4. When matters prescribed by the Enforcement Rules for market management occur, other than those specified in subparagraphs 1 through 3.

(2) In cases where a matter noted in each of the following subparagraphs has occurred, a listed company that issued business development investment company stocks shall report the details of the matter to the Exchange without delay:

1. Setting of the shareholder register closing period or record date;
2. Change of the head office location;
3. Change of a general fund administrator; or
4. When matters prescribed by the Enforcement Rules for market management occur, other than those specified in subparagraphs 1 through 3.

[March 4, 2026]

## **§50-20. Information Regarding Markets and Market Operation**

The Exchange shall disclose the information about any of the following matters without delay:

1. Matters related to initial listing, supplementary listing, listing change and de-listing; designation as an administrative issue and release from such designation, occurrence of causes for delisting, designation as a trading suspension issue and release thereafter pursuant to [§50(18)] above and [§18(1)] of the KOSDAQ Market Listing Regulation;
2. Details of a request for inquired disclosure and the disclosure deadlines; or
3. Other matters that the Exchange deems necessary.

[March 4, 2026]

## **§50-21. Withholding of Disclosures by the Exchange**

When the contents of a report made by a listed company that issued business development collective investment securities fall under any of the followings, the Exchange may withhold

such disclosure for a specified period of time until the relevant cause is resolved:

1. Case where it is confirmed that the details disclosed are in violation of the related statutes;
2. Case where it is judged that the sources of details disclosed could not be verified or such details may confuse the investors in making their investment decisions;
3. In addition, case where it is deemed that the sound trading practices in the KOSDAQ market is likely to be undermined.

[March 4, 2026]

#### **§50-22. Reporting of Changes to Existing Disclosure**

In cases where a listed company that issued business development collective investment securities cancels or changes the contents of a disclosure made pursuant to [§50-7] through [§50-12], it shall report to the Exchange within the deadlines set forth in each of the following subparagraphs:

1. Case where the contents of previous disclosure is required to be reported by the day following the occurrence of the event for disclosure: The day following the occurrence of the event; and
2. Case where the contents of previous disclosure is required to be reported by the day following the confirmation of the occurrence of the event for disclosure: The day following the confirmation of the event.

[March 4, 2026]

#### **§50-23. Reporting of Disclosure Officers, Etc.**

(1) The disclosure under this Chapter shall be made by the disclosure officer of the relevant listed company that issued business development collective investment securities.

(2) A listed company that issued business development collective investment securities shall appoint one (1) disclosure officer and one (1) disclosure manager and report it to the Exchange and the same shall apply when the disclosure officer and the disclosure manager are changed.

(3) Matters necessary for reporting, etc. related to the disclosure officer and disclosure manager pursuant to paragraph (2) shall be prescribed by the Enforcement Rules.

[March 4, 2026]

#### **§50-24. Disclosure in English**

A listed company that issued business development collective investment securities may make a disclosure in English within five (5) trading days after making the disclosure in Korean.

[March 4, 2026]

## **PART III. REPORTING, ETC. BY ELECTRONIC DOCUMENTS BY KOSDAQ-LISTED CORPORATIONS, ETC.**

(Amended on January 28, 2009; March 4, 2026)

### **CHAPTER I. GENERAL PROVISIONS**

#### **§51. Objectives**

The purpose of this Part is to stipulate the matters necessary with respect to filing of a statement, a report, or other document or material (hereinafter referred to as the “reports, etc.”) with the Exchange by KOSDAQ-listed corporations, etc. by an electronic document, pursuant to the provisions of Article 385(3) of the Enforcement Decree of the Act. (Amended on January 28, 2009)

#### **§52. Definitions**

(1) The term “submitter” in this Part shall mean a person who is obliged to submit electronic documents under [§53]. (Amended on January 28, 2009)

(2) The term “digital signature” in this Part shall mean a piece of information that is generated by using the digital signature creating key through the asymmetric cryptogram and unique to an electronic document, which enables to verify the identity of the person who submitted the electronic document and whether or not the electronic document has been modified. (Amended on January 28, 2009)

(3) The term “asymmetric cryptogram” in this Part shall mean a cryptographic method in which the key used for encryption of information and the key used for restoration of encrypted information are different from each other.

(4) The term “digital signature creating key” in this Part shall mean a piece of information in digital form utilized for digital signature.

(5) In addition to paragraphs (1) through (4), the terms used in this Part shall have the same meanings given to them in the Act, the Enforcement Decree of the Act, the Enforcement Rule of the Act and other relevant laws and the rules and regulations of the Exchange.

#### **§53. Reports, etc. filed in Electronic Documents**

The reports, etc. that are filed by an electronic document under this Part shall be each of the

followings: (Amended on January 28, 2009; February 22, 2013; July 22, 2015)

1. The reports, etc. that are submitted to the Exchange pursuant to this Regulation, the KOSDAQ Market Listing Regulation and the KOSDAQ Market Business Regulation, etc.;
2. [Deleted on January 28, 2009]
3. The disclosure documents under [§68]; and
4. Other documents, etc. that the Exchange deems necessary to be submitted in a form of electronic document.

#### **§54. Operation of Electronic Disclosure System**

(1) The Exchange shall operate an electronic disclosure system that is capable of receiving the reports, etc. submitted in a form of electronic document pursuant to [§53]. (Amended on January 28, 2009)

(2) The Exchange shall make available the reports, etc. that are received in a form of electronic document (including the reports, etc. received in an electronic form pursuant to [§5(1)]) for the public use through information and communication networks. Provided that this provision shall not apply to the case where the Exchange deems it necessary.

### **CHAPTER II. PREPERATION AND SUBMISSION OF ELECTRONIC DOCUMENTS**

#### **§55. Registration of Submitters of Electronic Documents**

(1) Each submitter of electronic documents shall register his/her personal information with the Exchange in advance in a manner specified in the Enforcement Rules and shall do the same when the registered information is changed.

(2) When a submitter has been registered or re-registered the changes in registered information with the Exchange pursuant to paragraph (1), the Exchange shall supply the necessary information, including the unique identification number to the concerned submitter. (Amended on January 28, 2009)

#### **§56. Submission, etc. of Electronic Documents**

(1) A submitter shall include the matters necessary for identifying the submitter and the information necessary for receiving, classifying and processing the electronic documents in the reports, etc. submitted in a form of electronic document.

(2) When submitting the reports, etc. electronically in accordance with paragraph (1), the submitter shall attach the source documents.

(3) Submitters may submit hard copies of an attachment which is deemed difficult to be included in or attached to the electronic documents.

#### **§57. Receipt of Electronic Documents and Notification Thereof**

(1) The Exchange may refuse to receive the reports, etc. submitted electronically by a submitter, if the reports, etc. are not prepared and submitted in accordance with the provisions of this Part.

(2) The Exchange shall notify the submitter of the receipt of the reports, etc. submitted by means of electronic document by using the information and communication networks.

#### **§58. Submission of Corrected Documents**

In cases where a submitter received a request for correction of a submitted electronic document or intends to correct it voluntarily, the submitter shall submit the corrected version of the electronic document, together with the details of the corrections.

#### **§59. Documents prepared by Persons Other Than the Submitter**

From among the documents to be attached to the reports, etc. pursuant to [§53], those that are prepared by a person other than the submitter, including a certified public accountant, shall digitally be signed by the person who prepared them before they are given to the submitter. (Amended on January 28, 2009)

#### **§60. Number of Copies of Electronic Document to be submitted**

In cases where a submitter has submitted the reports, etc. in a form of electronic document, it shall be deemed to have met the number of copies to be submitted as stipulated in the relevant Regulations of the Exchange.

#### **§61. Validity, etc. of Digital Signature**

(1) When intending to submit the reports, etc. in a form of electronic document, a submitter shall affix a digital signature on them.

(2) In cases where a submitter has affixed a digital signature on an electronic document pursuant to paragraph (1), it shall be deemed that the submitter has signed or affixed his/her seal on the document.

(3) The registration and certification of the digital signature for signing the electronic documents digitally pursuant to paragraph (1) and other matters relating to the digital signature

shall be accomplished in accordance with the manner stipulated in the Regulation on Securities Issuance and Disclosure. (Amended on January 28, 2009)

## **§62. Failure of Electronic Disclosure System**

(1) In cases where, due to a failure of the electronic disclosure system, the submission of the electronic documents under the provisions of this Part is not possible, the submitter shall submit the reports, etc. under [§53] to the Exchange in writing or via facsimile, etc. and In such cases, the electronic document files shall be attached. (Amended on January 28, 2009)

(2) When the electronic disclosure system is restored, the Exchange shall immediately register the electronic document files submitted under the provisions of paragraph (1) in the electronic disclosure system.

# **PART IV. DISCLOSURE OF EXERCISE OF VOTING RIGHTS OVER KOSDAQ-LISTED CORPORATIONS BY COLLECTIVE INVESTMENT BUSINESS ENTITIES, ETC.**

(Amended on January 28, 2009; March 4, 2026)

## **CHAPTER I. GENERAL PROVISIONS**

### **§63. Purpose**

The purpose of this Part is to stipulate the matters necessary for the disclosure of the details of the voting rights exercised over KOSDAQ-listed corporations by collective investment business entities, trust business entities and investment company, etc. (hereinafter referred to as “collective investment business entities, etc.”) pursuant to the provisions of Articles 87(8), 112(7) and 186(2) of the Act. (Amended on January 28, 2009)

### **§64. Definitions**

(1) The term "collective investment business entities" in this Part shall mean the collective investment business entities under Article 8(4) of the Act. (Amended on January 28, 2009)

(2) The term "investment company, etc." in this Part shall mean the investment company, etc. under Article 182(1) of the Act. (Amended on January 28, 2009)

(3) The term "disclosure officer" in this Part shall mean a full-time director (in the case of investment company, etc., it refers to a corporate director) or a person falling under Article 401-2(1)3 of the Commercial Act, who is in charge of corporate disclosure representing the concerned collective investment business entity, etc. Provided that, in the case of a company

that has filed an application for commencement of rehabilitation procedures or has received the court ruling on commencement of the rehabilitation procedures pursuant to the Debtor Rehabilitation and Bankruptcy Act, the custodian under Article 74 of the same Act or the protective custodian under Article 85 of the same Act shall be deemed as the disclosure officer. (Amended on September 12, 2008; January 28, 2009)

(4) The term "unfaithful disclosure" in this Part shall refer to the case where the collective investment business entities, etc. fail to faithfully fulfill the disclosure obligations under the relevant statutes and this Part. (Amended on January 28, 2009)

(5) The term "corporations required to disclose their voting rights" in this Part shall mean the KOSDAQ-listed corporations, from among the corporations required to disclose their voting rights under the provisions of Article 87(7) of the Act. (Amended on January 28, 2009)

#### **§65. Faithful Fulfillment of Disclosure Obligations, etc.**

(1) The collective investment business entities, etc. shall faithfully and voluntarily disclose the matters to be disclosed pursuant to the relevant statutes and this Part. (Amended on January 28, 2009)

(2) The collective investment business entities, etc. shall, before disclosing the matters to be disclosed under paragraph (1), neither leak nor spread the details of the concerned information in the KOSDAQ Market in the form of rumors, news, etc. (Amended on January 28, 2009)

#### **§66. Methods of Reporting and Submission of Documents**

The matters that the collective investment business entities, etc. are obliged to disclose to the Exchange pursuant to this Part shall be submitted in a form of electronic document pursuant to Part II. Provided that, in cases where the Exchange deems it unavoidable, they may be submitted via postal service, facsimile or in person. (Amended on January 28, 2009)

#### **§67. Designation of Disclosure Officer**

(1) The collective investment business entities, etc. shall designate disclosure officers (one each for the principal and the associate) who will be responsible for the duty of disclosure representing the relevant company. In such cases, the investment company, etc. may, aside from the corporate director of the concerned company, designate a person-in-charge of the company, which is deemed proper, from among the collective investment business entity, the trust business entity, the investment trader, the investment broker and the fund accounting and administration company, with which it has entered into a business entrustment contract, as the associate disclosure officer. (Amended on January 28, 2009)

(2) The collective investment business entities, etc. shall, when designating or changing their disclosure officers pursuant to paragraph (1), notify the Exchange of the fact without delay, together with a document stating that the concerned disclosure officer will faithfully fulfill the

disclosure obligations. (Amended on January 28, 2009)

## **CHAPTER II. DISCLOSURE OF DETAILS OF VOTING RIGHTS EXERCISED BY COLLECTIVE INVESTMENT BUSINESS ENTITIES, ETC.**

### **§68. Disclosure of Details of Voting Rights exercised by Collective Investment Business Entities, etc.**

(1) When exercising voting rights at the general shareholders' meeting of a KOSDAQ-listed corporation which has issued the stocks, etc., that belong to the collective investment assets, the concerned collective investment business entities, etc. shall prepare a written document on the details of voting rights exercised during one (1) year from the 1<sup>st</sup> day of April of the latest year, in accordance with each of the following classifications and submit it to the Exchange by the end of April of each year without delay, for the protection of investors' interests. Provided that trust business entities shall not apply with the provisions of subparagraphs 2 and 3, but they shall report the details of voting rights exercised within five (5) days after the date of shareholders' meeting. (Amended on September 12, 2008, January 28, 2009; February 22, 2013; December 28, 2016)

1. In the case of exercising the voting rights over merger, transfer or acquisition of business, appointment or dismissal of officers, amendment of the articles of incorporation and other matters which are equivalent thereto and have an apparent influence on investors' interests: Details about voting rights exercised and the rationale.

2. In the case of exercising the voting rights over the corporations required to disclose their voting rights: Details about voting rights exercised and the rationale.

3. In the case where the voting rights are not exercised over the corporations required to disclose their voting rights: Details of reasons for not exercising the voting rights.

(2) [Deleted on February 22, 2013]

(3) The Exchange shall disclose the matters that are disclosed by the collective investment business entities, etc. under the provisions of paragraph (1) to the investors through its disclosure media. (Amended on January 28, 2009)

**§69. [Deleted on February 22, 2013]**

**§70. [Deleted on February 22, 2013]**

## **CHAPTER III. UNFAITHFUL DISCLOSURE**

## **§71. Types of Unfaithful Disclosure**

In cases where the collective investment business entities, etc. have failed to disclose the matters to be disclosed that are specified in [§68] by the corresponding deadlines, the Exchange shall deem such case as an unfaithful disclosure: (Amended on January 28, 2009; February 22, 2013)

1. [Deleted on February 22, 2013]
2. [Deleted on February 22, 2013]
3. [Deleted on February 22, 2013]

## **§72. Publication of Fact about Unfaithful Disclosure**

(1) The Exchange shall, when collective investment business entities, etc. have made an unfaithful disclosure under the provisions of [§71], make public such fact and the reasons therefor, etc. (Amended on January 28, 2009; April 18, 2012)

(2) When making public the fact about unfaithful disclosure made by collective investment business entities, etc. pursuant to paragraph (1), the Exchange shall post the fact and the reasons therefor, etc. of the unfaithful disclosure in the Daily Stock Market Review for five (5) days and on the electronic disclosure media for one (1) month, from the date of such unfaithful disclosure. (Amended on January 28, 2009; April 18, 2012)

**PART V. SUPPLEMENTARY PROVISIONS**  
(Amended on January 28, 2009; March 4, 2026)

**§73. Calculation of Disclosure Period**

The periods relating to disclosure shall be calculated in accordance with the methods stipulated in the Enforcement Rules.

**§74. Correction of Disclosure Texts**

In cases where it is deemed that the disclosure details may possibly confuse the investors in making their investment decisions due to the difference between the details of disclosure reported by a KOSDAQ-listed corporation and the source documents such as the minutes of board of directors meeting, or recording errors such as typo error and omission, the Exchange may advise the concerned corporation to voluntarily correct the concerned words or phrases. Provided that this provision shall not apply to the matters to be reported pursuant to PART III. (Amended on December 23, 2005; January 28, 2009)

**§74-2. Public Opinion Gathering**

In case this Regulation (including its Enforcement Rules) is to be amended, public opinion of interested parties should be gathered pursuant to the Enforcement Rules.

[April 29, 2020]

**§75. Enforcement Rules**

The Exchange shall stipulate disclosure forms and other specific matters necessary for the enforcement of this Regulation in the Enforcement Rules.

**ADDENDA**  
(January 21, 2005)

§1. Effective Date

This Regulation shall become effective on the date when the Exchange is incorporated.

§2. Abolition of Previous Regulation

On the effective date of this Regulation, the Regulation on Disclosure of the KOSDAQ Market and the Regulation on the Disclosure of Contents of Voting Rights Exercised over the KOSDAQ Corporations by Asset Management Companies of the KOSDAQ Stock Market shall be abolished.

§3. Interim Measures Following the Abolition of Previous Regulations

The reporting, etc. fulfilled prior to the effective date of this Regulation, pursuant to the Regulation on Disclosure of the KOSDAQ Market and Regulation on the Disclosure of Contents of Voting Rights Exercised over the KOSDAQ Corporations by Asset Management Companies of the KOSDAQ Stock Market shall be construed as the reporting, etc. pursuant to this Regulation.

**ADDENDA**  
(December 23, 2005)

§1. Effective Date

(1) This Regulation shall become effective on April 1, 2006. Provided that the provisions of [§2(4), §2(21), §2(22), §6(1)2(e)(ii) and §6(1)3(a)(viii)] and the amended provisions of [§11(1) & (2) and §18(2)3] shall become effective on December 26, 2005.

(2) The reporting deadline for the inquired disclosure in the amended provisions of [§12(2)], the amended provisions of [§12(3)], the same-day reporting requirements in the amended provisions of [§6(1)] and the amended provisions of [§31] shall become effective on January 1, 2006.

**ADDENDUM**  
(September 8, 2006)

This Regulation shall become effective on September 18, 2006.

**ADDENDUM**  
(September 29, 2006)

This Regulation shall become effective on December 1, 2006.

**ADDENDA**  
(May 11, 2007)

§1. Effective Date

This Regulation shall become effective on May 17, 2007.

§2. Examples of Application

The amended provisions of [§6(1)2(d)(iii)], [§6(1)2(e)(i)c)], [§21(1)2 & 3] and [§30/21] shall apply starting with the fiscal year that comes after December 31, 2006.

**ADDENDA**  
(October 12, 2007)

§1. Effective Date

This Regulation shall become effective on October 22, 2007.

§2. Amendment of Other Regulation

The KOSDAQ Market Disclosure Regulation shall be amended by adding subparagraph 12 to [§17] as follows:

12. Case of entering into, terminating or amending the agreement for liquidity provision pursuant to [§12-3(2)] of the KOSDAQ Market Business Regulation

**ADDENDA**  
(September 12, 2008)

§1. Effective Date

This Regulation shall become effective on October 1, 2008. Provided that the amended provisions of [§33(3) through (5)], [§33-3 and §44] shall become effective on February 4, 2009.

§2. Interim Measure for Designation as Unfaithful Disclosure Corporation

In case of a corporation that has been designated as unfaithful disclosure corporation pursuant to [§33] of the former Regulation, the numbers of designations shall be converted into the demerit points by assuming that one designation is equivalent to 10 demerit points.

### §3. Application of Provisions Relating to Improvement Plan

The amended provisions of [§33-3] shall apply starting with the corporation designated as unfaithful disclosure corporation pursuant to [§33] after the effective date of this Regulation.

### §4. Application of Provisions Relating to Reporting of Disclosure Officer

The amended provisions of [§38(6)] shall apply starting with the case of reporting the disclosure officer after the effective date of this Regulation.

## **ADDENDA** (January 28, 2009)

### §1. Effective Date

This Regulation shall become effective on February 4, 2009. Provided that the amended provisions of [§45(2)] shall become effective on September 1, 2009.

### §2. Application of Provisions Relating to Unpaid Principal of Corporate Bonds

The amended provisions of [§6(1)2(c)(vi)] shall apply starting with the case where the payment date of principal arrives after the effective date of this Regulation.

### §3. Application of Provisions Relating to Fine for Noncompliance with Disclosure Obligation

The amended provisions of [§32] and [§34] shall apply starting with the corporation that receives a prior notification for designation as unfaithful disclosure corporation after the effective date of this Regulation.

## **ADDENDUM** (April 15, 2009)

This Regulation shall become effective on April 16, 2009.

## **ADDENDUM** (July 1, 2009)

This Regulation shall become effective on July 6, 2009.

## **ADDENDA** (KOSDAQ Market Listing Regulation) (October 21, 2009)

## §1. Effective Date

This Regulation shall become effective on the date when the proposed amendment of the Enforcement Decree of the Financial Investment Service and Capital Market Act (legislative notice no. 2009-151) is made public.

## §2. Amendment of Other Regulation

The KOSDAQ Market Disclosure Regulation shall be amended by adding following new provisions of [§37(4)]:

(4) The provisions of paragraphs (1) through (3) shall apply *mutatis mutandis* to the case of subscription warrants or subscription right certificates issued by the KOSDAQ-listed corporations...

### **ADDENDA**

(KOSDAQ Market Listing Regulation)  
(Regulation No. 553 / December 2, 2009)

## §1. Effective Date

This Regulation shall become effective on December 7, 2009.

## §2. Amendment of Other Regulation

The KOSDAQ Market Disclosure Regulation shall be amended by formulating the following new provisions of [§38/13]:

13. In the event that the largest shareholder of a KOSDAQ-listed corporation is a paper company noted in [§21(1)1c] of the KOSDAQ Market Listing Regulation, when the change of the largest shareholder of the concerned paper company has been confirmed. In such cases, the report shall be filed according to the stipulation of the Enforcement Rules.

### **ADDENDUM**

(Regulation No. 561 / December 18, 2009)

This Regulation shall become effective on December 21, 2009.

### **ADDENDA**

(Regulation No. 594 / April 21, 2010)

## §1. Effective Date

This Regulation shall become effective on April 26, 2010. Provided that the amended provision of [§7(3)] shall become effective on the date specified in the Enforcement Rules.

## §2. Exceptions to the Accounting Standards

The amended provisions of [§3(6)] shall apply starting with the corporation whose semiannual period or end of fiscal year arrives after the effective date of this Regulation.

### **ADDENDA**

(Regulation No. 639 / September 17, 2010)

## §1. Effective Date

This Regulation shall become effective on September 27, 2010.

## §2. Interim Measures concerning Disclosure Staff of Listed Foreign Corporations

In the case of a foreign corporation listed on the KOSDAQ Market before the effective date of this Regulation, the disclosure staff under the amended provisions of [§22] within three (3) months from the effective date of this Regulation.

### **ADDENDA**

(Regulation No. 660 / December 1, 2010)

## §1. Effective Date

This Regulation shall become effective on January 1, 2011.

## §2. Exception for Korea international financial reporting standards

The amended provisions of [§6(1)2(e)(i)a), §6(1)2(e)(ii)a), §37(2)4(a)(i) and §37(2)4(b)(i)] shall apply starting with the first fiscal year that begins after the effective date of this Regulation. Provided that the corporation that has adopted the Korea international financial reporting standards before the effective date of this Regulation shall apply it from the effective date of this Regulation.

### **ADDENDA**

(Regulation No. 672 / December 29, 2010)

## §1. Effective Date

This Regulation shall become effective on March 1, 2011.

## §2. Exception for Inquired Disclosure

The amended provisions of [§10(2) & (6)], [§11(3)] and [§28] shall apply starting with the corporation that received the request for inquired disclosure pursuant to [§10] after the effective date of this Regulation.

### **ADDENDA**

(Regulation No. 702 / March 2, 2011)

## §1. Effective Date

This Regulation shall become effective on March 7, 2011. Provided that the amended provisions of [§40(1)1] shall be put into effect on the day specified in the Enforcement Rules.

## §2. Exception in Reporting Impairment Loss

The amended provisions of [§6(1)2(d)(viii)] shall apply starting with the impairment loss stated in the quarterly report, half-yearly report and annual report of which the legal submission deadline arrives after April 1, 2011.

## §3. Exception in Reporting the Internal Accounting System

The amended provisions of [§6(1)2e(i)(d)] shall apply starting with the CPA audit report for the first fiscal year that begins after the effective date of this Regulation.

## §4. Exception for Report of New Growth Business Company

For the new growth business companies that were classified as the venture company pursuant to [§7(2)] of former version of this Regulation, the amended provisions of [§6(4) & (5)] shall apply starting from January 1, 2012.

### **ADDENDUM**

(Regulation No. 736 / June 15, 2011)

This Regulation shall become effective on August 1, 2011.

### **ADDENDA**

(Regulation No. 777 / November 4, 2011, 2011)

## §1. Effective Date

This Regulation shall become effective on November 21, 2011.

## §2. Exception for Qualification Requirements of Disclosure Agent

The amended provisions of [§22(2)] shall apply starting with the case where the disclosure agent is appointed after the effective date of this Regulation.

# **ADDENDA**

(Regulation No. 831 / April 18, 2012)

## §1. Effective Date

This Regulation shall become effective on April 23, 2012.

## §2. Exception in Filing Report about Disclosure Officer

The amended provisions of [§2(4)] shall apply starting from the company that files a report about disclosure officer after the effective date of this Regulation.

## §3. Exception in Reporting Data on Overdue Loan Principal

The amended provisions of [§6(1)2(c)(vii)] shall apply starting with the case where the payment date of loan principal arrives after the effective date of this Regulation.

## §4. Exception in Taking Measure against Unfaithful Disclosure Corporation

The amended provisions of [§34(1)] shall apply starting with the corporation that receives the prior notice on designation as unfaithful disclosure corporation after the effective date of this Regulation.

# **ADDENDA**

(Regulation No. 894 / February 22, 2013)

## §1. Effective Date

This Regulation shall become effective on the date specified in the Enforcement rules, which is within six (6) months of approval date by the Financial Services Commission. Provided that the amended provisions of [§2(7), §3(4), §6(1)1(e), §6(1)2(a)(ii), §6(1)2(d)(vii) & (ix), §6(1)2(e)(vi) & (vii), §6(1)3(a)(viii), §19(2), §28(2)4, §37(1)4, §47, §53/3, and §68 through §71], “case of making false or incorrect disclosure of the matters or omitting material matters” noted in the amended provisions of [§27/2], and “stock retirement” noted in the amended provisions of [§29/16] shall be put into effect on March 4, 2013; the amended provisions of [§2(4), (21) & (26), §5(4), §8, §9, §37(2)4(a)(iv), §44 and §48] shall be put into effect on April

1, 2013; the amended provisions of [§5(4), §27/4, §30-2 and §40] shall be put into effect on May 2, 2013; and the amended provisions of [§2(29) and §30] and Chapter VI of Part I shall be put into effect on the day specified in the Enforcement Rules.

#### §2. Exception in Reporting of Admission of Principal Consolidated Subsidiaries

The reporting pursuant to the amended provisions of [§6(1)3(a)(vi)] shall be made en bloc before the effective date of this Regulation.

#### §3. Exception in Unfaithful Disclosure about Material Business Matters of Consolidated Subsidiaries

In applying [§27/1] to the case of noncompliance with the amended provisions of [§6-2], it shall start with the corporation that has been notified of designation as unfaithful disclosure corporation in advance after January 1, 2014.

#### §4. Exception for ex post facto review of inquired disclosure

The amended provisions of [§28(2)4] shall apply starting with the corporation that the Exchange requests to make an inquired disclosure after the effective date of this Regulation.

#### §5. Exception for the Corporations Not Subject to External Audit

(1) In case where a KONEX-listed corporation does not fall under the criteria specified in Article 2 of the Act on External Audit in the fiscal year 2011, notwithstanding the main sentence of [§3(1)], the financial matters of 2012 fiscal year that are applied to the concerned corporation shall be those stated in the financial statement corrected according to the result of audit carried on the financial statement of 2012 fiscal year.

(2) The provisions of paragraph (1) shall be put into effect on July 1, 2013.

### **ADDENDA (KOSDAQ Market Listing Regulation)** (Regulation No. 927 / June 19, 2013)

#### §1. Effective Date

This Regulation shall become effective on June 25, 2013.

#### §2. Exception for Corporation Not Subject to External Audit

In case where a corporation that does not fall under the criteria specified in Article 2 of the Act on External Audit in the fiscal year 2011 applies for listing on the KONEX Market, the audit report shall be substituted with the audit report on the financial statement of the concerned corporation for the fiscal year 2012,

#### §3. Amendment of Other Regulation

Following new provisions of §5 shall be added to the addenda dated February 22, 2013:

## §5. Exception for the Corporations Not Subject to External Audit

(1) In cases where a KONEX-listed corporation does not fall under the criteria specified in Article 2 of the Act on External Audit in the fiscal year 2011, notwithstanding the main sentence of [§3(1)], the financial matters of 2012 fiscal year that are applied to the concerned corporation shall be those stated in the financial statement corrected according to the result of audit carried on the financial statement of 2012 fiscal year.

(2) The provisions of paragraph (1) shall be put into effect on July 1, 2013.

### **ADDENDUM**

(Regulation No. 948 / September 11, 2013)

This Regulation shall become effective on September 17, 2013.

### **ADDENDUM**

(Regulation No. 1172 / April 29, 2015)

This Regulation shall become effective on May 4, 2015.

### **ADDENDA**

(Regulation No. 1217 / July 22, 2015)

## §1. Effective Date

This Regulation shall become effective on September 7, 2015. Provided that the amended provisions on the corporate rehabilitation procedure in [§2(4)] shall be put into effect on July 27, 2015.

## §2. Exception in the Disclosure Matters, etc. of Foreign Listed Corporation

If a foreign holding company falls under the amended provisions (limited to the case where the listed holding company received the restrictions or measures falling under the amended provision of [§20(1)8] before the effective date of this regulation and still the restrictions or measures are effective as of the effective date of this regulation) of [§20(1)8] as of the effective date of this regulation, it shall report the details within one (1) month from the effective date of this Regulation.

§3. Exceptions in Matters related to the Procedure of Designation of Unfaithful Disclosure Corporation, Imposition of Fine, Request for Replacement of Disclosure Officers, etc. and Request for Improvement Plan, etc.

The amended provisions of [§32(3)] (excluding proviso), [§33], [§34] and [§34-2] shall apply to the corporation received prior notice on the designation of an unfaithful disclosure corporation after the effective date of this Regulation.

#### §4. Exception for Termination or Cancellation of a Collateral Agreement, etc. resulting in the Change of the Largest Shareholder

The amended provisions of [§6(1)3(a)(ix)b)] shall apply to the case where, after a listed corporation reports the conclusion of an agreement, etc. by which all or part of the stocks held by the largest shareholder are offered as a collateral after the effective date of this Regulation, the agreement is terminated or cancelled.

### **ADDENDA**

(Regulation No. 1277 / December 30, 2015)

#### §1. Effective Date

This Regulation shall become effective on May 2, 2016.

#### §2. Exceptions in applying Matters related to Unfaithful Disclosure, etc.

(1) For the breach of disclosure obligations pertaining to the amended provisions of [§6(1)4], the provisions of [§27] (excluding subparagraph 2) through [§29] shall apply starting with the case of violation that first occurred after six (6) months from the effective date of this Regulation.

(2) The provisions pertaining to the imposition of demerit points on the KOSDAQ-listed corporation for the violation of the amended provisions of [§35(4)] shall apply after six (6) months from the effective date of this Regulation.

### **ADDENDA**

(Regulation No. 1394 / December 28, 2016)

#### §1. Effective Date

This Regulation shall become effective on December 2, 2016. Provided that the amended provisions of [§34(1)] shall be put into effect on April 3, 2017

#### §2. Exceptions in applying Provisions on Reporting of Information concerning Transferee of Stocks or Management Rights

The amended provisions of item (a)(ix)a) of [§6(1)3] shall apply starting with the case of the first report made after the effective date of this Regulation.

#### §3. Exceptions concerning Measures against Unfaithful Disclosure Corporations

The amended provisions of [§29(3)] shall apply starting with the case of, from among the matters on capital increase disclosed pursuant to [§6(1)2(a)(i)] or [§6-2(1)3] first after the effective date of this Regulation, changing the payment date by six (6) months or more.

#### §4. Exceptions in applying Provisions on the Fine for Noncompliance with Disclosure Obligations

The amended provisions of [§34(1)] shall apply starting with the corporation that is prior notified on designation as an unfaithful disclosure corporation after the effective date of this Regulation.

### **ADDENDA**

(Regulation No. 1553 / May 2, 2018)

#### §1. Effective Date

This Regulation shall become effective on May 8, 2018.

#### §2. Exceptions in applying Provisions concerning Measures against Unfaithful Disclosure Corporations

(1) The amended provisions of subparagraph 10 of [§29] shall apply starting with the case of changing the payment date by six (6) months or more, from among the disclosures made first pursuant to item (a)(vi) of [§6(1)2] or [§6-2(1)6] after the effective date of this Regulation.

(2) The amended provisions of subparagraph 18(b) of [§29] shall apply starting with the case where the amount of contract executed up to the date of doubling the contract period originally disclosed [if it is less than one (1) year, it shall be the day when it becomes one (1) year] is less than 50/100 of the contract amount originally disclosed, from among the disclosures made first pursuant to [§6(1)1c] after the effective date of this Regulation.

#### §3. Exceptions in applying Provisions concerning Imposition of Demerit Points with respect to the Matters to be reported for Market Management

The amended provisions of [§38(2)] shall apply starting with the case where the matter to be reported has occurred first after the effective date of this Regulation but failed to make the reporting thereof.

#### §4. Exceptions in applying Provisions concerning Withholding of Disclosures

The amended provisions of [§42(3)] shall apply starting with the case where the withholding period ends or the conditions for withholding are lifted first after the effective date of this Regulation.

### **ADDENDUM**

(Regulation No. 1682 / May 2, 2019)

This Regulation shall become effective on May 7, 2019.

**ADDENDA (KOSDAQ Market Listing Regulation)**  
(Regulation No. 1689 / June 26, 2019)

§1. Effective Date

This Regulation shall become effective on July 1, 2019.

§2 and §3 [Omitted]

§4. Amendment of Other Regulation

The KOSDAQ Market Disclosure Regulation shall partially be amended as follows:

The subparagraph 9 of [§20(1)] shall move to subparagraph 10, and subparagraph 9 of the same Paragraph shall be newly established as follows:

9. Case where an auditor was appointed (limited to the case of appointing an auditor other than the existing auditor), dismissed or substituted in accordance with paragraphs (2) through (7) of [§3-2] of the KOSDAQ Market Listing Regulation.

**ADDENDUM**  
(Regulation No. 1809 / April 29, 2020)

This Regulation shall become effective on May 8, 2020.

**ADDENDA (KOSDAQ Market Listing Regulation)**  
(Regulation No. 1977 / August 25, 2021)

§1. Effective Date

This Regulation shall become effective from the date specified in the Enforcement Rules.

§2. through §9. [Omitted]

§10. Amendment of Other Regulation

(1) and (2) [Omitted]

(3) A part of the KOSDAQ Market Disclosure Regulation is amended as follows.

Of [§2(7)], “[§2(10)] of the KOSDAQ Market Listing Regulation” shall be “[§2(1)14] of the KOSDAQ Market Listing Regulation”.

Of [§2(26)], “[§2(31)] of the KOSDAQ Market Listing Regulation” shall be “[§2(1)39] of the KOSDAQ Market Listing Regulation”.

Of [§6(1)2(e)(iii)b)], “[§28(1)2 through 4(b)] of the KOSDAQ Market Listing Regulation” shall be “[§53(1)1 through 4(b)] of the KOSDAQ Market Listing Regulation”.

Of [§6(1)2(e)(iii)c)], “[§38(1)4 through 4-2 and 10(a) through (c)], and any of [§38(2)5(j)] of the KOSDAQ Market Listing Regulation” shall be “[§54(1)3, 4 and 8(a) through (c) and any of [§56(1)3(i)] of the KOSDAQ Market Listing Regulation”.

Of [§9-2(2)1(b)], “[§28] of the KOSDAQ Market Listing Regulation” shall be “[§53] of the KOSDAQ Market Listing Regulation”.

Of [§9-2(2)1(c)], “[§38(1)24(i)(iv)] of the KOSDAQ Market Listing Regulation” shall be “[§73(2)9(a)(iv)] of the KOSDAQ Market Listing Regulation”.

Of [§9-2(2)1(d)], “Case where a new corporation is established according to a merger, or the concerned KOSDAQ-listed special purpose acquisition company becomes extinct as a result of the merger (limited to the case of merging with an unlisted corporation)” shall be “where a new corporation is established according to a merger”.

Of [§9-2(2)2(b)], “[§4-3(1)2] of the KOSDAQ Market Listing Regulation” shall be “[§69(2)] of the KOSDAQ Market Listing Regulation”.

Of [§20(1)9], “[§3-2(2) through (7)] of the KOSDAQ Market Listing Regulation” shall be “[§15(2) through (7)] of the KOSDAQ Market Listing Regulation”.

Of [§33(1)], “[§38(2)5(l)] of the KOSDAQ Market Listing Regulation” shall be “[§56(1)3(h)] of the KOSDAQ Market Listing Regulation”.

Of [§38(1)13], “[§23(2)] of the KOSDAQ Market Listing Regulation” shall be “[§51(1)] of the KOSDAQ Market Listing Regulation”.

Of [§40(1)1], “[§27] of the KOSDAQ Market Listing Regulation” shall be “[§47] of the KOSDAQ Market Listing Regulation”.

Of [§40(1)2], “[§28-2] of the KOSDAQ Market Listing Regulation” shall be “[§52] of the KOSDAQ Market Listing Regulation” and “[§29(1)] of the KOSDAQ Market Listing Regulation” shall be “[§18(1)] of the KOSDAQ Market Listing Regulation”,

(4) [Omitted]

## **ADDENDUM**

(Regulation No. 2002 / November 24, 2021)

This Regulation shall become effective on December 13, 2021. However, the amended provisions of [§2(10), (22) and (24)] shall be put into effect on December 30, 2021.

### **ADDENDUM**

(Regulation No. 2022 / December 7, 2022)

This Regulation shall become effective on December 12, 2022.

### **ADDENDA**

(Regulation No. 2084 / November 13, 2024)

#### **§1. Effective Date**

This Regulation shall become effective on December 1, 2024.

#### **§2. Application of Provisions concerning Decision on Resale of Convertible Bonds, Etc.**

The provision of resale decision under [§6(1)2(a)(vi)d)] and amended provision of subparagraph 10 of [§29] shall apply to cases where decisions on issuance pursuant to [§6(1)2(a)(vi)a)] after the effective date of these Regulations.

#### **§3. Transitional Measures concerning Decision on Acquisition of Already-issued Convertible Bonds, ETC. before Maturity**

In the case where a decision to acquire CBs, BWs, or EBs issued before the enforcement of this Regulation is made before maturity after the enforcement date of this regulation, the previous regulations shall apply notwithstanding the amended provisions of [§6(1)2(a)(vi)d)] and subparagraph 10 of [§29].

### **ADDENDA (KOSDAQ Market Listing Regulations)**

(Regulation No. 2343 / July 9, 2025)

#### **§1. Effective Date**

This Regulation shall become effective on July 10, 2025. Provided that the amended provisions of [§53(1)5] and [§54(1)12] shall become effective on January 1, 2026, and the amended provisions of [§53(1)1] and [§56(1)15] and [§6(1)2(e)(i)©] of the KOSDAQ Market Disclosure Regulation in [§9] of this ADDENDA shall become effective on January 1, 2027.

#### **§2. Application of Provisions Concerning Improvement of Procedures of Preliminary Listing Review and Mandatory Holding of Listing Sponsor**

(Omitted)

### §3. Application of Provisions Concerning Backdoor Listing

(Omitted)

### §4. Interim Measures and Application of Provisions Concerning Market Capitalization Not Up to Standards

(Omitted)

### §5. Interim Measures and Application of Provisions Concerning Sales Amount Not Up to Standards

(1) Notwithstanding the amended regulations of [§53(1)1] and [§56(1)15], the sales amount (referring to sales amount in the auditor's report for the latest business year; the same hereinafter in this Article) noted in the revised regulations of [§53(1)1] and [§56(1)15] shall be applied with the sales amount stated in the following table for the period from January 1, 2027 to December 31, 2028.

| Application period<br>(based on the submission time of auditor's report) | Sales amount    | Remarks        |
|--------------------------------------------------------------------------|-----------------|----------------|
| From July 10, 2025 to December 31, 2026                                  | KRW 3 billion   | Same as before |
| From January 1, 2027 to December 31, 2027                                | KRW 5 billion   | -              |
| From January 1, 2028 to December 31, 2028                                | KRW 7.5 billion | -              |

(2) (Omitted)

(3) (Omitted)

(4) (Omitted)

### §6. Application of Provisions Concerning Cases Falling under Auditor's Opinion Not Up to Standards for Two (2) Consecutive Years

(Omitted)

### §7. Application of Provisions Concerning Improvement of Procedures for Listing Maintenance Review

(Omitted)

### §8. Application of Provisions Concerning Income before Tax from Continuing Operations

(Omitted)

### §9. Amendment of Other Regulations

A part of the KOSDAQ Market Disclosure Regulations shall be revised as follows:

- In [§6(1)2(e)(i)©], “KRW 3 billion” shall be revised to “KRW 10 billion”.
- In [§6(1)2(e)(iii)©], “[§56(1)3(m) through (p)]” shall be revised to “[§56(1)15 through 18]”.
- In [§33(1)], “[§56(1)3(j)]” shall be revised to “[§56(1)12]”.

#### §10. Exceptions to Amendment of Other Regulations

Notwithstanding the amended regulations of the KOSDAQ Market Disclosure Regulations revised in accordance with [§9] of this ADDENDA, sales amount noted in the amended regulations in [§6(1)2(e)(i)©] of the KOSDAQ Market Disclosure Regulations revised in accordance with [§9] of this ADDENDA for the period from January 1, 2027 to December 31, 2028 shall be applied with the sales amount stated in the table in [§5(1)] of this ADDENDA.

#### **ADDENDUM**

(Regulation No. 2361 / October 1, 2025)

This Regulation shall become effective on October 20, 2020.

#### **ADDENDUM**

(Regulation No. 2406 / January 28, 2026)

This Regulation shall become effective on March 1, 2026.

#### **ADDENDUM**

(Regulation No. 2417 / March 4, 2026)

This Regulation shall become effective on March 17, 2026.

#### **ADDENDUM**

(Regulation No. 2467 / July 1, 2026)

This Regulation shall become effective on July 2, 2026.

#### **ADDENDUM**

(Regulation No. 2480 / July 31, 2026)

This Regulation shall become effective on August 3, 2026.